

[3 EDW. 7.] *Bury and District Joint Water Board* [Ch. ccxxxiv.]
Act, 1903.



CHAPTER ccxxxiv.

An Act to empower the Bury and District Joint Water Board to construct additional waterworks to repeal and amend enactments relating to the water undertaking of the Board and for other purposes. [14th August 1903.] A.D. 1903.

WHEREAS by the Bury and District Water (Transfer) Act 1900 the water undertaking of the mayor aldermen and burgesses of the county borough of Bury was transferred to the Bury and District Joint Water Board (in this Act called "the Board") consisting of representatives from the constituent authorities set forth in the said Act:

And whereas the supply of water from the existing works of the Board is insufficient to satisfy the present and growing demands of the inhabitants within the limits of supply of the Board and it is expedient that the Board should be empowered to construct the additional waterworks in this Act described or referred to:

And whereas it is expedient that the Board should be empowered to purchase compulsorily the lands herein-after described in connexion with their waterworks undertaking:

And whereas it is expedient that the Board should be empowered to borrow money as in this Act mentioned and that better provision should be made as in this Act mentioned in regard to the loans of the Board the securities upon which they are charged the discharge of borrowed money and other financial matters:

And whereas the indebtedness of the Board in respect of their water undertaking and their unexhausted borrowing powers

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A.D. 1903. in respect thereof on the 31st day of March 1903 are set forth
in the Third Schedule to this Act:

And whereas it is expedient to consolidate and amend the enactments in force relating to the water undertaking of the Board:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Board as follows:—

	£
(1) For the purchase of lands - - -	65000
(2) For the execution of the works authorised by this Act - - -	130000
(3) For the construction of filter beds extensions of mains and other waterworks purposes -	60000
	£ 255000

And whereas the several works included in such estimates respectively are permanent works:

And whereas plans and sections showing the lines and levels of the works by this Act authorised and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county palatine of Lancaster and are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title
and citation
of Acts.

1. This Act may be cited as the Bury and District Joint Water Board Act 1903 and this Act and the Act of 1900 may be cited together as the Bury and District Joint Water Board Acts 1900 and 1903.

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2. This Act is divided into parts as follows:—

Part I.—Preliminary.

Part II.—Works.

Part III.—Lands.

Part IV.—Supply.

Part V.—Repeal and amendment of Acts and Parts of Acts.

Part VI.—Finance.

Part VII.—Miscellaneous.

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Division of
Act into
parts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act namely:—

Incorporation of Acts.

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

The Waterworks Clauses Act 1847 (except the provisions thereof with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and except section 83 relating to accounts) but that Act shall be read and have effect as if the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” were omitted from section 44:

The Waterworks Clauses Act 1863:

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in such provisions for the purposes of this Act “the railway” means the reservoirs by this Act authorised and the “centre of the railway” means the boundaries of those respective works.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

Interpretation.

“The Board” means the Bury and District Joint Water Board;

“The Bury Corporation” means the mayor aldermen and burgesses of the borough of Bury;

“The Act of 1900” means the Bury and District Water (Transfer) Act 1900;

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- “Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed ;
- “Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security (not being annuities rentcharges or securities transferable by delivery) authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 other than securities of the Board ;
- “Principal moneys” means all moneys borrowed or to be borrowed under any statutory borrowing power for the purposes of the water undertaking of the Board excluding water annuities and any moneys raised by stock but including the mortgages or other securities the liabilities in regard to which were transferred to the Board under the Act of 1900 ;
- “Water annuities” means the annuities created under the Bury Improvement Act 1872 as consideration for the purchase of the undertakings of the Bury and Radcliffe Waterworks Company and the Haslingden and Rawtenstall Waterworks Company ;
- “Water transfer stock” means only the ninety thousand pounds Bury Corporation Redeemable Stock transferred under the Act of 1900 and designated by that Act as Bury and District Joint Water Board (three pounds ten shillings per centum) Redeemable Stock ;
- “Board stock” means stock created and issued by the Board in manner provided by section 64 of the Act of 1900.

PART II.

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WORKS.

5. Subject to the provisions of this Act the Board may make and maintain in the lines and situations and upon the lands delineated upon the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the works herein-after described (that is to say):—

Power to
make water-
works.

Work No. 1 A reservoir to be called the "New Hall Reservoir" situate on a stream or brook known as the Scout Moor or Dearden Brook the embankment of which will be placed $35\frac{1}{2}$ chains or thereabouts measured in a straight line in a north-easterly direction up the said brook from the centre of the bridge known as Dearden Clough Bridge at which embankment the reservoir will commence and thence extend up such stream in a north-easterly direction for a distance of $26\frac{3}{4}$ chains or thereabouts measured in a straight line and there terminate:

Work No. 2 A reservoir to be called the "Scout Moor Reservoir" situate on a stream or brook known as the Scout Moor or Dearden Brook the embankment of which reservoir will be placed $69\frac{3}{4}$ chains or thereabouts measured in a straight line in a north-easterly direction up the said brook from the centre of the bridge known as Dearden Clough Bridge at which embankment the reservoir will commence and thence extend up such stream in a north-easterly direction for a distance of $19\frac{3}{4}$ chains or thereabouts measured in a straight line and there terminate:

Work No. 3 A reservoir to be called the "Scout Moor High Level Reservoir" situate on a stream or brook known as the Scout Moor or Dearden Brook the embankment of which reservoir will be placed $119\frac{1}{2}$ chains or thereabouts measured in a straight line in a north-easterly direction up the said brook from the centre of the bridge known as Dearden Clough Bridge at which embankment the reservoir will commence and thence extend up such stream in a south-easterly direction for a distance of $13\frac{1}{4}$ chains measured in a straight line and there terminate:

Work No. 4 An aqueduct tunnel or line of pipes (No. 1) to commence in the intended reservoir firstly described and to be called the "New Hall Reservoir" at a point $40\frac{1}{4}$ chains or thereabouts measured in a straight line in a north-easterly

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direction up the aforesaid Scout Moor or Dearden Brook from the centre of the bridge known as Dearden Clough Bridge and to terminate in an existing aqueduct or conduit of the Board in the Whalley Road in the urban district and parish of Ramsbottom at a point $3\frac{3}{4}$ chains or thereabouts measured in a north-westerly direction from the centre of the culvert or bridge which carries the said Whalley Road over the said Scout Moor or Dearden Brook :

Work No. 5 An aqueduct tunnel conduit or line of pipes (No. 2) to commence in the intended reservoir secondly described and to be called the "Scout Moor Reservoir" at a point on the stream known as Scout Moor or Dearden Brook $72\frac{1}{4}$ chains or thereabouts measured in a straight line in a north-easterly direction up the aforesaid Scout Moor or Dearden Brook from the centre of the bridge known as Dearden Clough Bridge and to terminate in Market Street Edenfield in the urban district and parish of Ramsbottom at the junction of that street with Gin Croft Lane in the said parish :

Work No. 6 An aqueduct tunnel conduit or line of pipes (No. 3) to commence in the intended reservoir thirdly described and to be called the "Scout Moor High Level Reservoir" at a point on the stream known as the Scout Moor or Dearden Brook $122\frac{3}{4}$ chains or thereabouts measured in a straight line in a north-easterly direction up the said brook from the centre of the bridge known as Dearden Clough Bridge and to terminate in Market Street Edenfield aforesaid and at the junction of that street with Gin Croft Lane aforesaid.

All the said works will be wholly situate in the townships or parishes of Ramsbottom and Walmersley-cum-Shuttleworth in the county of Lancaster.

Subsidiary
works.

6. The Board in addition to the foregoing works may upon any lands for the time being belonging to them make and maintain all such cuts channels catchwaters aqueducts culverts tunnels drains junctions sluices by-washes weirs gauges wells tanks filter-beds filters embankments dams retaining walls bridges roads approaches telegraphic and telephonic apparatus engines pumps machinery buildings appliances apparatus and conveniences connected with or ancillary to the said works or necessary for inspecting maintaining repairing cleansing managing working or using the same :

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Provided that no telegraphic or telephonic apparatus made and maintained under the authority of this Act shall be used for the purpose of transmitting telegrams in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869. A.D. 1903.

7. When and so soon as the Board become the owners on both sides of any lands adjoining any footpath shown on the deposited plans as intended to be stopped up the Board may stop up and discontinue the same and thereupon the sites and soil thereof shall be by this Act vested in the Board freed from all public rights over or affecting the same. Stopping up
of footpaths.

8. Notwithstanding the provisions of the section of this Act the marginal note of which is "Stopping up of footpaths"— Exemption
of certain
public foot-
paths from
powers to
stop up con-
tained in Act.

(1) The Board shall not stop up the following footpaths and roads shown on the deposited plans as intended to be stopped up (that is to say):—

(A) In the parish of Habergham Eaves the public footpaths through the farmyard and fields numbered respectively 153 155 157 and 158 on the said plans;

(B) In the parish of Ramsbottom the public footpaths numbered 14 and 31 on the said plans;

(C) In the parish of Walmersley-cum-Shuttleworth the said public footpath numbered 31 on the said plans and also the road shown on the said plans leading from Scout Moor Bottom through Scout Fold to Scout Road;

(D) In the parish of Rawtenstall the public footpath commencing at the north-west corner of the field numbered 143 on the said plans and terminating at the most southerly point of the same field;

(E) In the parish of Haslingden the road numbered 111 on the said plans:

(2) The Board shall not at any time stop up or discontinue for public use but shall keep in good repair and condition the substituted footpath now dedicated to public use in the parish of Dunnockshaw running from Burnley Road to Gambleside Colliery pumping station.

9. In constructing the works by this Act authorised the Board may deviate from the lines thereof to any extent not exceeding the limits of deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and may also deviate from the levels Power to
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shown on the deposited sections to any extent not exceeding three feet upwards and to any extent downwards. Provided that if it be found necessary or expedient in the construction of the reservoirs by this Act authorised to alter the situation of any dam or embankment the Board shall not construct such dam or embankment of a greater maximum height above the general surface of the ground than four feet above the maximum height thereof shown on the deposited sections and that no part of the aqueducts by this Act authorised shall be constructed above the surface of the ground except so far as is shown on the deposited sections.

Power to
take waters.

10. Subject to the provisions of this Act the Board may for the purposes of their water undertaking collect impound take use and appropriate such of the waters of the Dearden or Scout Moor Brook and all tributaries and streams flowing into that brook and other springs and waters as can be taken or intercepted by the waterworks authorised by this Act (other than the portions of the aqueducts outside the drainage area in respect of which compensation water is given by this Act) and all waters found in on or under any of the lands acquired by the Board under the powers of this Act.

Powers for
repair of
reservoirs
and aque-
ducts and
temporary
discharge of
water into
streams.

11. For the purpose of executing any necessary work of repair or of cleansing or of examining any of the reservoirs aqueducts conduits or other works of the Board the Board may cause the water in any such reservoir aqueduct conduit or works to be temporarily discharged into any available stream or watercourse.

In the exercise of the power conferred by this section the Board shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

Compensa-
tion water.

12. As full compensation for all waters by this Act authorised to be taken used and appropriated by the Board for the purposes of their water undertaking the Board shall permit or cause to flow in a regular and continuous stream the respective quantities of water herein-after mentioned (that is to say) :—

(A) If and so long as the Scout Moor High Level Reservoir only shall be constructed and used 136500 gallons per day ;

(B) If and so long as the Scout Moor High Level Reservoir and the Scout Moor Reservoir only shall be constructed and used 375950 gallons per day ;

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(c) If and so long as the Scout Moor High Level Reservoir the Scout Moor Reservoir and the New Hall Reservoir shall be constructed and used 515250 gallons per day. A.D. 1903.

The Board shall construct and maintain within 200 yards of the foot of the embankment of the Scout Moor High Level Reservoir a sufficient gauge for measuring the quantity of water to be discharged or to flow as aforesaid so long as the Scout Moor High Level Reservoir only shall be constructed and used and such gauge shall be open to the inspection and examination of the several persons for the time being interested in the water so to be discharged or to flow through or over the same.

From and after the construction and use of the Scout Moor Reservoir the flow of water to be discharged in pursuance of subsection (A) over the said gauge shall cease and in lieu thereof the quantity of water then to be discharged in respect of the Scout Moor High Level Reservoir and Scout Moor Reservoir shall be 375950 gallons per day and the Board shall construct and maintain within 200 yards of the foot of the embankment of the Scout Moor Reservoir a sufficient gauge for measuring the said quantity of water and such gauge shall be open to the inspection and examination of the several persons for the time being interested in the water so to be discharged or to flow through or over the same.

From and after the construction and use of the New Hall Reservoir the flow of water to be discharged over the second mentioned gauge in pursuance of subsection (B) shall cease and in lieu thereof the quantity of water then to be discharged in respect of the said three reservoirs shall be 515250 gallons per day and the Board shall construct and for ever after maintain within 200 yards of the foot of the embankment of the New Hall Reservoir a sufficient gauge for measuring the said quantity of water and such gauge shall be open to the inspection and examination of the several persons for the time being interested in the water so to be discharged or to flow through or over the same.

Provided that during the first filling of the aforesaid reservoirs respectively the Board shall not collect and impound any of the waters of the Dearden or Scout Moor Brook and its tributaries whenever a less quantity than the quantities of water hereinbefore specified to be discharged or to be permitted to flow from those reservoirs respectively shall be passing down the said brook immediately below the outlet of the said reservoirs respectively.

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Provided further that during such first filling as aforesaid whenever an amount of water in excess of the quantities of water so specified is passing down the said brook as aforesaid the Board shall be entitled to collect or impound only the excess above such quantities respectively.

Penalty on failure to supply stipulated quantity of water.

13. In case of any failure neglect or default by or in consequence of which the quantity of water required by this Act to flow or be discharged through or over the respective gauges to be constructed by the Board as herein-before set forth shall not so flow or be discharged the Board shall for and during every day on which such failure neglect or default shall occur forfeit and pay by way of penalty to the owners or occupiers of each of the several mills or works on the course of the Dearden or Scout Moor Brook affected thereby who shall have actually received damage or incurred any loss by reason of such failure neglect or default as aforesaid and who may sue for and recover the same the sum of five pounds and in case of any wilful default in the discharge of the compensation water by this Act provided the Board in addition to any penalty they may incur therefor under the provisions of this section shall make compensation to the owners or occupiers for any loss damage or injury which they may suffer by reason of such wilful default :

Provided that for the purposes of this section the Calico Printers Association Limited their successors and assigns in respect of their works and mills known as Stubbins Print Works and Ramsbottom Mills or either of them and James R. Crompton and Brothers Limited their successors and assigns in respect of their paper works in Elton on the River Irwell and Adam Crompton Bealey Herbert Crompton Bealey and Adam Crompton Bealey the younger their executors administrators and assigns in respect of their water rights and works situate at Radcliffe on the said River Irwell shall be deemed to be owners or occupiers of mills and works on the course of the Dearden or Scout Moor Brook and shall be entitled to sue for and recover the penalties aforesaid and to recover compensation in respect of their said several mills and works in the event of any failure to discharge the compensation water by this Act provided.

Disputes as to gauges to be settled by an engineer.

14. In the event of any dispute at any time arising between the Board and any millowner or person interested as to the sufficiency or accuracy of the said respective gauges or as to their state of repair and condition such disputes shall be settled and determined by some hydraulic engineer on whom the parties shall

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agree or in default of agreement by a hydraulic engineer to be appointed by the President of the Institution of Civil Engineers on the application of either of the parties. A.D. 1903.

15. For the protection from pollution of the reservoirs and works of the Board and of all brooks streams watercourses and waters over which the Board for the time being for the purposes of their water supply have any power of user or in which for the like purposes they are for the time being interested in the event of the sanitary authority for the district within which the pollution occurs refusing or neglecting within the space of one month after being requested by the Board by notice in writing under the hand of the clerk to the Board so to do to enforce with respect to such pollution the provisions of the Rivers Pollution Prevention Act 1876 the Board shall in respect of such pollution have and may if they think fit from time to time exercise such and the like powers as may for the time being be exercised by a sanitary authority under that Act and the provisions of that Act shall for the purposes aforesaid extend and apply mutatis mutandis to the Board. Provisions to prevent fouling of water.

16. Nothing in this Act contained shall lessen or control any right power or authority now vested in the county council of the county palatine of Lancaster for altering or rebuilding any bridge or the lengths of roadway adjacent thereto repairable by the inhabitants of the said county or any hundred therein which may be crossed or affected by the works of the Board authorised by this Act or by the works set forth in the second part of the Second Schedule to this Act and authorised by the Bury Corporation Waterworks Act 1889 and the Bury Corporation Water Act 1899 respectively but all such rights powers and authorities shall remain in as full force as if this Act and the said two Acts had not passed and the said county council shall not be liable to make any compensation whatever for any damage or injury to the Board by the altering or rebuilding of any such bridge and lengths of roadway adjacent thereto Provided that in altering or rebuilding such bridge or lengths of roadway adjacent thereto nothing shall be done to impede or interfere with the works of the Board for any greater length of time or in any other manner than shall be necessary for the execution of the work and before commencing such alteration or rebuilding ten days' notice thereof shall be given to the Board and the said county council shall afford to the Board all necessary and reasonable temporary facilities for enabling them to continue the supply of water during such alteration or rebuilding. For protection of county council of county palatine of Lancaster.

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If any bridge repairable by the inhabitants of the said county or of any hundred therein upon or along which any pipes of the Board are laid be altered or rebuilt by the county council of the said county the said county council may require the Board to alter any such pipes in such manner as the circumstances of the case may reasonably require.

Provided that in case of any difference between the said county council and the Board as to such alteration the same shall be referred to an arbitrator to be agreed upon between the parties or failing agreement to be appointed by the Board of Trade on the application of either party.

For protec-
tion of Earl
of Derby
and James
Whittaker
and Son.

17. Notwithstanding anything shown upon the deposited plans or contained in this Act it shall be lawful for the Earl of Derby and his lessees and tenants James Herbert Whittaker and George Edward Whittaker trading as James Whittaker and Son to exercise all such rights as they now possess or but for the passing of this Act would have possessed of entering upon the Scout Moor Stone Quarries and the lands and tramways occupied therewith and shown upon the deposited plans situate in the said parish of Walmersley-cum-Shuttleworth and of winning working and carrying away the mines quarries and minerals therein and of using the waters of springs and streams therein for those purposes and of depositing spoil and of constructing drains roads tramways and other ways upon the said lands and of draining the mines and quarries and of doing all acts and things necessary or proper for the purposes aforesaid as fully and effectually as if this Act had not been passed It shall not be lawful for the Board to acquire otherwise than by agreement any buildings or plant at any time erected used or occupied by the said Earl of Derby or his lessees or tenants within or on the said land :

Provided always the said Earl and his lessees and tenants for the time being including the said James Herbert Whittaker and George Edward Whittaker trading as James Whittaker and Son shall execute all necessary works to entirely prevent the waters which the Board by this Act are authorised to take use and appropriate from being polluted from the said Scout Moor Stone Quarries.

For protec-
tion of Calico
Printers
Association
Limited.

18. For the protection of the Calico Printers Association Limited their successors and assigns or other the owners or lessees of Love Clough Print Works (herein-after referred to as "the owner")

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the following provisions shall unless otherwise agreed between the Board and the owner have effect (that is to say):— A.D. 1903.

(1) Notwithstanding anything in this Act contained or shown on the deposited plans the Board shall not divert or in any way interfere with for the purpose of their undertakings or supply any water or waters arising on or flowing through over or from any portion of the lands for the time being belonging to them near to and to the south or south-west of the Hapton Reservoir which are not within the drainage area of the Hapton Reservoir Provided that nothing in this subsection contained shall apply to water derived from the Gambleside Colliery Pumping Station :

(2) The Board shall not divert into or so that they may eventually fall or pass into the stream called Limy Water above the Love Clough Print Works any waters derived from Gambleside Colliery Pumping Station or any of the past or future workings thereof.

19. If the Scout Moor High Level Reservoir (Work No. 3) by this Act authorised be not completed within five years from the passing of this Act and if the New Hall Reservoir and the Scout Moor Reservoir (Works Nos. 1 and 2) be not completed within twelve years from the passing of this Act then on the expiration of those respective periods the powers by this Act granted for the making thereof respectively or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed. Period for completion of works.

PART III.

LANDS.

20. Subject to the provisions of this Act the Board may enter upon take and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference. Power to acquire lands.

21.—(1) The Board may in lieu of acquiring any lands for the purpose of the aqueducts authorised by this Act acquire such easements and rights in such lands as they may require for the purpose of making maintaining cleansing repairing renewing and enlarging the aqueducts and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such easements and rights as fully as if the same were lands within the meaning of those Acts. Power to acquire easements only for aqueducts.

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(2) Provided that as regards any lands taken or used by the Board for the purpose of such aqueducts where they are respectively laid underground the Board shall not (unless they give notice to treat for such lands and not merely for easements therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Board.

(3) Provided also that (except as to lands forming part of a street) nothing in this section contained shall authorise the Board to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Board to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

Period for
compulsory
purchase of
lands.

22. The powers of the Board for the compulsory purchase of lands shall not be exercised after the expiration of seven years from the passing of this Act.

Persons un-
der disability
may grant
easements
&c.

23. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Board any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
purchase
additional
lands by
agreement.

24. The Board in addition to any lands which they are by this Act authorised to acquire by compulsion or by agreement within the drainage area may by agreement purchase take on lease acquire and hold for the purposes of their water undertaking any lands not exceeding fifty acres Provided that the Board shall not create or permit the creation or continuance of any nuisance on any such lands or use such lands for any building except offices or dwellings for persons in their employ or such buildings or works as may be incident to or connected with their waterworks.

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25. The Board may make and carry into effect agreements with the owners lessees or occupiers of any land within the drainage area of the reservoirs and works by this Act authorised with reference to the execution by the Board or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters by this Act authorised to be diverted collected and appropriated by the Board flowing to upon or from such lands directly or derivatively into such reservoirs and works.

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Agreements
with land-
owners as to
drainage.

26. The Board on selling any lands acquired for or in connexion with their water undertaking and not required for that purpose may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Reservation
of water
rights &c.
on sale.

27. The Board may grant leases of any of the lands in or adjoining their several drainage areas already acquired or which may be acquired by them or any right or interest in or over such lands for such terms and at such rents and subject to such covenants and conditions as they may think fit but such leases shall contain such covenants as the Board deem necessary or expedient for the prevention or regulation of any act or thing tending to the pollution of any waters which the Board are authorised to take or impound within the several drainage areas or tending to the injury of the waterworks of the Board in those respective areas and every such lease shall contain a proviso for re-entry in case of non-payment of rent or breach of any of the lessees covenants.

Lease of
lands in
drainage
areas.

28. Notwithstanding anything in this Act it shall be lawful for the lords of the honor of Clitheroe and their lessees and tenants to exercise all such rights as they now possess or but for the passing of this Act would have possessed of entering upon the surface of the lands delineated on the deposited plans and of winning working and carrying away mines quarries and minerals and of using the waters of springs and streams within the honor of Clitheroe for those purposes and of depositing spoil and of constructing drains roads tramways and other ways upon the lands within the said honor and of draining mines and quarries and of doing all acts and

For protec-
tion of lords
of honor of
Clitheroe.

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A.D. 1903. — things necessary or proper for the purposes aforesaid as fully and effectually as if this Act had not been passed.

It shall not be lawful for the Board to acquire otherwise than by agreement any buildings or plant at any time erected used or occupied by the said lords or their lessees or tenants within the limits of the honor of Clitheroe aforesaid.

Restriction
on taking
houses of
labouring
class.

29. The Board shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partly by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Board acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "labouring class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them and the expression "house" means any house or part of a house occupied as a separate dwelling.

Works autho-
rised by this
Act to form
part of under-
taking of
Board.

30. The waterworks and other works by this Act authorised shall for all purposes be deemed to form part of the waterworks undertaking of the Board.

PART IV.

SUPPLY.

Limit of
pressure.

31. The water to be supplied by the Board need not at any time be delivered at a pressure greater than that to be afforded by gravitation from the reservoir from which the supply is given.

32. The Board shall at the request of the owner or occupier of any house or part of a house in any street in which any pipe of the Board shall be laid or any person who under the provisions of this Act or any Act incorporated therewith shall be entitled to demand a supply of water for domestic purposes furnish to such owner or occupier or other person a sufficient supply of water for their domestic uses at the rates per annum herein-after specified (that is to say):—

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—
Rates for
supply of
water for
domestic
purposes.

Where the annual rackrent or value of such house shall not exceed twenty pounds at a rate per centum per annum not exceeding ten pounds :

Where the annual rackrent or value of such dwelling-house shall exceed twenty pounds but shall not exceed forty pounds at a rate per centum per annum not exceeding nine pounds six shillings and eightpence :

Where such annual rackrent or value shall exceed forty pounds but shall not exceed sixty pounds at a rate per centum per annum not exceeding eight pounds thirteen shillings and fourpence :

Where such annual rackrent or value shall exceed sixty pounds and not exceed eighty pounds at a rate per centum per annum not exceeding eight pounds :

Where such annual rackrent or value shall exceed eighty pounds and not exceed one hundred pounds at a rate per centum per annum not exceeding seven pounds six shillings and eightpence :

And where such annual rackrent or value shall exceed one hundred pounds at a rate per centum per annum not exceeding six pounds thirteen shillings and fourpence :

Provided that the Board shall not be entitled in any case to demand for the water rate for any house or part of a house included in any division of the scale of rates authorised by this section a greater sum of money than they would be entitled to demand if such house or part of a house were of just sufficient annual rackrent or value to bring it within the next division of the said scale relating to premises of a higher annual rackrent or value whereon a lower rate per centum per annum is chargeable Where the water rate is chargeable on the annual rackrent or value of a part only of any premises entered in the valuation list or poor rate such annual rackrent or value shall be a fairly apportioned part of the whole premises ascertained as aforesaid the apportionment in case of dispute to be determined by two justices.

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If there be a watercloset or waterclosets or a private bath or baths in such dwelling-house then in addition to the rates above specified the following rates shall be payable (that is to say) :—

Where the annual rackrent or value of such dwelling-house does not exceed ten pounds the sum of four shillings per annum for one watercloset or bath :

Where the annual rackrent or value of such dwelling-house shall exceed ten pounds but shall not exceed twenty pounds the sum of five shillings per annum for one watercloset or bath :

Where the annual rackrent or value of such dwelling-house shall exceed twenty pounds but shall not exceed fifty pounds the sum of six shillings per annum for one watercloset or bath :

Where the annual rackrent or value of such dwelling-house shall exceed fifty pounds and shall not exceed one hundred pounds the sum of seven shillings and fourpence per annum for one watercloset or bath :

Where the annual rackrent or value of such dwelling-house shall exceed one hundred pounds the sum of ten shillings per annum for one watercloset or bath :

And for each additional watercloset or private bath if more than one in any of the aforesaid cases the sum of four shillings per annum.

As to
recovery of
rates.

33. If any person fails to pay to the collector on demand the amount due by him in respect of any water rate the Board may recover the amount as a civil debt in manner provided by the Summary Jurisdiction Acts.

Board not to
be compelled
to supply
certain
closets or
baths.

34. The Board shall not be compelled to supply with water any watercloset or any bath or the apparatus or pipes connected therewith respectively unless the same be so constructed and used as to prevent the contamination of the water of the Board nor any bath which shall be capable of containing when filled for use more than fifty gallons of water Provided that the foregoing provisions shall not entitle the Board to cut off or discontinue the domestic supply of the house in which such watercloset or bath is situate.

Rates pay-
able by
owners of
small houses.

35. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Board so determine pay the rate for the supply but the rate may be

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recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate. A.D. 1903.

36. The Board shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required. Supply to houses partly used for trade &c.

37. The Board shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water. Board not bound to supply several houses by one pipe.

38. A notice to the Board from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Board. Notice of discontinuance.

39.—(1) The Board may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination. Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Board are bound to afford and do in fact afford or are prepared on demand to afford a constant supply and the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 shall apply to all byelaws so made.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Board may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable

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A.D. 1903. by the Board as the water rates in respect of the premises are recoverable.

Supply of
water for
other than
domestic
purposes and
by measure.

40. The Board may supply water for other than domestic purposes on such terms and conditions as the Board think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as rates due to the Board for water. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes. Provided also that the price to be charged shall not exceed two shillings per thousand gallons.

Power to
sell or let
meters.

41. The Board may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit. The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Board to let for hire any water fittings to any person supplied by them with water.

Notice to
Board of
connecting
or discon-
necting
meters.

42. Before any person connects or disconnects any meter by means of which any of the water of the Board is intended to be or has been registered he shall give not less than twenty-four hours notice in writing to the Board of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Board and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Injuring
meters.

43. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Board or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Board shall (without prejudice to any other right or remedy for the protection of the Board) be liable to a fine not exceeding five pounds and the Board may in addition thereto recover the amount of any damage by them sustained :

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any

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pipe meter instrument or fittings belonging to the Board or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Board the Board may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for ensuring the proper registering by such meter or other instrument of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Board by the person so offending and may be recovered by them as water rates are recoverable. A.D. 1903.

The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Board when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

44. The Board may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets apparatus and receptacles as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Board in providing such materials and executing such work shall be paid by the person requiring the same. Power to Board to supply materials.

45. The Board may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the limits of their water supply to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any company or person supplying water under parliamentary authority within the district to be supplied and of the local authority of that district nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of the Board. Contracts for supplying water in bulk.

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As to supply
to borough of
Haslingden.

46. Concurrently with the construction of the Scout Moor High Level Reservoir (Work No. 3) by this Act authorised the Board shall construct in the situation and in accordance with plans and sections to be previously submitted to and reasonably approved by the mayor aldermen and burgesses of the borough of Haslingden (in this section called "the corporation") the well and main herein-after described and shall for ever thereafter maintain the same to the satisfaction of the corporation.

The said well shall be so constructed that the level of the water therein shall never be less than one thousand and thirty feet above Ordnance datum and the said main shall be an eight-inch main which shall be always maintained fully charged with water so as to ensure a full and sufficient continuous supply of water to a point in the said borough at a level of nine hundred feet above Ordnance datum.

No pipe or pipes for conveying water from the said well to any other place than the said borough shall be connected with the said well at a lower level than the said eight-inch main and the said main shall be used solely for the supply of water to the said borough and shall not be tapped for any other purpose.

From and after the completion of the works provided for by this section and the supply of water to the said borough by means thereof as aforesaid the provisions for the protection of the corporation set forth in the First Schedule to this Act shall be and the same are hereby repealed.

Board may
continue
waterworks
&c.

47. The Board may continue maintain alter and improve their waterworks and subject to the provisions of this Act may from time to time make and maintain on lands belonging to them or authorised to be used by them for the purpose of waterworks all necessary pipes tracks sluices embankments channels of communication by-washes filtering beds tanks culverts engines drains flood-gates and other conveniences for the effectual use and maintenance of their waterworks.

PART V.

REPEAL AND AMENDMENT OF ACTS AND PARTS OF ACTS.

Repeal of
Water Acts.

48. The Water Acts set forth in Part I. of the Second Schedule to this Act except the enactments set forth in Part II. of the same schedule are hereby repealed Provided that for the purposes of explaining or construing any portions of the said Acts

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not hereby repealed it shall be lawful to refer to the repealed portions of those respective Acts and the several provisions of the said Acts set forth in the said Part II. of the said Second Schedule to this Act so far as is consistent with the tenor thereof shall be read together with and have effect as if they formed part of this Act notwithstanding the partial repeal of the said Acts as aforesaid. A.D. 1903.

(A) All acts works matters and things before the commencement of this Act done or commenced under the powers and authorities or by the operation of the said Acts or any of them and which were at the commencement of this Act good valid and available or in progress and all awards conveyances leases mortgages water annuity certificates stock certificates bonds covenants deeds instruments contracts agreements obligations rights and remedies at the commencement of this Act existing under the same shall be and continue as good valid and available for all purposes and for and against all parties and may be commenced continued and completed as if this Act had not been passed :

(B) The name of the Board shall be substituted for the name of the respective water companies or the Bury Corporation as the case may be in the enactments excepted from repeal set forth in Part II. of the Second Schedule to this Act.

49. The sections set forth in Part III. of the said Second Schedule to this Act of the Bury Improvement Act 1872 and the Bury Corporation Act 1894 are hereby re-enacted and made binding upon the Board. Incorporation of parts of Bury Improvement Acts.

50. The following sections of the following Acts shall be and the same are hereby repealed (that is to say) :— Repeal of certain sections of Acts relating to water undertaking.

The Bury Improvement Act 1872.—Sections 9 54 to 115 117 to 128 and sections 146 147 154 164 165 167 to 171 and 193 ;

45 and 46 Vict. cap. clxx.—Article iv. of the Bury Order dated 10th May 1882 ;

The Bury Improvement Act 1885.—So much of section 3 as relates to water rents and charges for the supply of water or the loan of meters or fittings connected therewith sections 32 to 36 and sections 130 131 and 133 ;

The Bury Corporation Act 1894.—Sections 5 to 12 ;

The Act of 1900.—Sections 24 25 30 (except the words “ From and after the thirty-first day of March one thousand nine hundred the said ninety thousand pounds stock shall be desig-

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nated as 'The Bury and District Joint Water Board (three pounds ten shillings per centum) Redeemable Stock'")
32 42 46 47 (except subsection (1)) 48 to 57 59 to 61 and
the First Schedule to such Act.

Certain sections of Acts not to apply to Board.

51. The following sections of the following Acts shall not apply to the Board or to their water undertaking but shall be read and construed as applicable only to the Bury Corporation (that is to say) :—

The Bury Improvement Act 1872.—Sections 137 143 150 to 153 156 to 163 and 166 ;

The Bury Improvement Act 1885.—Sections 37 122 to 128 132 and 135 to 188 ;

The Bury Corporation Act 1899.—Sections 26 to 29.

For protection of estate of late John Bowker.

52. Nothing contained in this Act shall prejudice alter or affect the obligations contained in and the indemnity given or purporting to have been given by section 44 of the Bury and Radcliffe Waterworks Act 1853 notwithstanding the repeal of that section and the same shall be binding on the Board.

PART VI.

FINANCE.

Power to borrow.

53. The Board may in addition to the sum of one hundred and two thousand four hundred and fifty-seven pounds sixteen shillings and elevenpence which they were authorised to borrow by section 47 (Power to borrow) of the Act of 1900 borrow on mortgage at interest any sum or sums of money for the purposes herein-after mentioned not exceeding the respective amounts (when specified) following (that is to say) :—

- (1) The capital sums making together in the aggregate four hundred and nine thousand and twelve pounds four shillings and one penny which the Bury Corporation were authorised to borrow for the purposes specified in section 35 (Power to borrow) of the Bury Corporation Water Act 1899 so far as such sums have not already been borrowed by that corporation or the Board :
- (2) Such sums as the Board may require to borrow for the redemption or purchase of such of the water annuities as the Board may agree with the annuitants to redeem or purchase ;
- (3) For the purchase of lands for and the execution of the works authorised by this Act a sum not exceeding one hundred and ninety-five thousand pounds :

- (4) For the construction of filter beds extensions of mains and other waterworks purposes a sum not exceeding sixty thousand pounds : A.D. 1903.
- (5) For the purchase of land in the drainage area and for the drainage and other works in connexion therewith such sum as may be requisite :
- (6) For paying the costs and expenses of this Act as herein-after provided the sum requisite for that purpose :
- (7) With the approval of the Local Government Board such further sums as may be required for any of the purposes of the water undertaking.

54. The Board may raise all or any principal moneys by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of principal moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act Provided also that for the purposes of that Act the revenues rates and moneys on which in pursuance of this Act principal moneys are to be charged shall be deemed to be the local rate. Mode of raising money.

55. The Board shall pay off all principal moneys and shall make provision for the redemption and extinction of the water annuities and water transfer stock within the respective periods following (in this Act referred to as "the prescribed periods") (that is to say):— Periods for repayment of principal moneys and for redemption of stock and annuities.

- (A) As to the sum of twenty thousand nine hundred and forty two pounds three shillings and ninepence balance of the principal moneys borrowed and remaining outstanding on the thirty-first day of March one thousand nine hundred and three in respect of indebtedness of the Board for the purchase of land shown in column VIIIc of the Third Schedule to this Act and numbered 1 within fifty years from the thirty-first day of March one thousand nine hundred and three :
- (B) As to ninety-seven thousand four hundred and eighty pounds one shilling and one penny being the balance of principal moneys borrowed and water transfer stock issued and remaining outstanding on the thirty-first day of March one thousand nine hundred and three shown in

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- column VIIIc of the same schedule and numbered 2 within fifty years from the thirty-first day of March one thousand nine hundred and three being the residue of the period authorised by the Bury Corporation Acts of 1885 and 1889 :
- (c) As to the water annuities and as to moneys borrowed or to be borrowed for the purchase of such annuities (the capital value of which is at present represented by five hundred and twenty-one thousand one hundred and three pounds twelve shillings and sixpence) within fifty years from the thirty-first day of March one thousand nine hundred and three being the residue of the period authorised by the Bury Corporation Act 1889 :
- (d) As to the sum of one hundred and twenty-three thousand nine hundred and ten pounds eleven shillings and one penny shown in column VIIIc of the same schedule and numbered 4 being the balance of the principal moneys borrowed and water transfer stock issued and remaining outstanding on the thirty-first day of March one thousand nine hundred and three within sixty years from the date of borrowing :
- (e) As to the sum of one hundred thousand three hundred and eighty-three pounds two shillings and sevenpence shown in column VIIIc of the same schedule and numbered 8 being the balance of the purchase moneys payable to the Bury Corporation by the Board on the transfer of the water undertaking within sixty years from the date of borrowing :
- (f) As to the sum of four hundred and three thousand pounds shown in column IV of the same schedule and numbered 6 being the principal moneys borrowed or to be borrowed in respect of land purchased and to be purchased and works authorised under the powers of the Bury Corporation Waterworks Act 1899 within sixty years from the date of borrowing :
- (g) As to the principal moneys to be borrowed under this Act for waterworks purposes within sixty years from the date of borrowing :
- (h) As to the principal moneys borrowed with the approval of the Local Government Board within such period not exceeding sixty years as that Board may think fit to sanction :
- (i) As to the balance of the principal moneys borrowed for paying the costs and expenses of the Bury Corporation

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Waterworks Act 1889 the Bury Corporation Water Act 1899 and the Act of 1900 within the respective periods by those Acts limited : A.D. 1903.

(J) And as to the costs of this Act within five years from the date of borrowing.

56.—(1) Notwithstanding any of the provisions of section 28 (As to charges on water undertaking) of the Act of 1900 or any other provision to the contrary all principal moneys water transfer stock water annuities and Board stock shall be charged on the water undertaking and the revenues thereof and on all rates and moneys which the Board are authorised to levy raise or collect or cause to be levied raised or collected within the respective water supply districts of the constituent authorities. Security for principal moneys stock and annuities.

(2) The water annuities shall be the first charge on the said undertaking revenues rates and moneys.

(3) The interest and dividends for the time being payable on all principal moneys and water transfer stock shall rank equally and shall be a charge on the said undertaking revenues rates and moneys next after the water annuities.

(4) All principal moneys and water transfer stock shall rank equally and *pari passu* without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the creation of the stock or in the date of the mortgages or other securities or on any other ground whatsoever.

57. The following sections of the Public Health Act 1875 shall with the necessary modifications extend and apply to mortgages granted in regard to principal moneys (that is to say) :— Provisions of Public Health Act as to mortgages to apply.

Section 236 Form of mortgage.

Section 237 Register of mortgages.

Section 238. Transfer of mortgages.

The term “local authority” in the said sections shall for the purposes of such application be construed to mean the Board.

58.—(1) Subject to the provisions of this section any mortgagee of the Board in respect of a mortgage for principal moneys or any holder of water transfer stock or water annuities may enforce the payment of arrears of dividend or interest or of principal or of principal and interest or of an annuity by the appointment of a receiver. Receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court may appoint a receiver on

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A.D. 1903. — such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him :

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees or holders of stock or annuities to such applicants collectively be not less than five hundred pounds in the whole.

Protection
of lender
from enquiry.

59. A person lending principal moneys to the Board under this Act shall not be bound to inquire as to the observance by the Board of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the moneys lent or of any part thereof.

Board not to
regard trusts.

60. The Board shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any principal moneys or security for principal moneys given by them may be subject but the receipt of the person in whose name any principal moneys or security for principal moneys stand in the register of mortgages of the Board shall from time to time be a sufficient discharge to the Board in respect thereof notwithstanding any trusts to which such principal moneys or security may be subject and whether or not the Board have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such principal moneys or security or any part thereof or interest thereon not entered in their register.

Application
of money
borrowed.

61. All principal moneys shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable.

Mode of re-
payment of
principal
moneys and
sinking fund
for principal
moneys.

62.—(1) The Board shall provide for the repayment within the prescribed periods of the principal moneys or any of them by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them and the payment of the first annual instalment or the first payment to the sinking fund as regards principal moneys borrowed on or before the thirty-first day of March one thousand nine hundred and three shall be made within one year from that date and as regards principal moneys borrowed after that date within one year from the thirty-first day of March next following the date of the borrowing of such moneys.

(2) In case the Board decide to repay any of the principal moneys by means of a sinking fund they shall transfer to the

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sinking fund any sums which at the passing of this Act shall be standing to the credit of any sinking fund formed for the repayment of any such principal moneys and in the case of all principal moneys for repayment of which provision shall not be made by the payment of equal annual instalments of principal or of principal and interest combined they shall each year throughout the prescribed periods respectively pay into such fund a sum or sums equal to the aggregate amount of all sums payable in that year for the purpose of providing within the prescribed periods respectively sums equal in amount to the respective amounts of the principal moneys for the repayment of which the fund is established.

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(3) The yearly sums to be paid into the sinking fund in respect of each amount of the principal moneys for the repayment of which the fund is established shall be either—

(A)—(i) The equal annual sum which if accumulated at compound interest at a rate not exceeding three pounds per centum per annum would together with the sums transferred under subsection (2) of this section and accumulations thereon at the same rate be sufficient after payment of all expenses to repay that amount in the prescribed period and (ii) accumulations of the said equal annual sums and sums transferred at compound interest at the rate per centum on which the said equal annual sum is calculated; or

(B) The equal annual sum which if continued throughout the prescribed period would together with the sums transferred under subsection (2) of this section be sufficient without accumulations to repay that amount within the prescribed period:

The said yearly payments in respect of each amount of the principal moneys shall be continued throughout the prescribed period.

(4) If it appears to the Local Government Board at any time that the said several yearly sum or sums as aforesaid or any of them are insufficient to provide within the prescribed periods sums equal in amount to the amount of the principal moneys in respect of which such yearly sum or sums respectively are paid the amount of such yearly sum or sums shall be increased to such extent as the Local Government Board may determine and the Board with the consent of the Local Government Board may at any time reduce such yearly sum or sums either temporarily or permanently in any case in which it appears to the Local Government Board that such yearly sum or sums would if maintained be more than sufficient to provide within the prescribed period a sum equal in amount to

A.D. 1903. the amount of the principal moneys in respect of which such yearly sum or sums are required to be paid and if the amount paid into the sinking fund at any time in respect of any particular amount of the principal moneys is in the opinion of the Local Government Board sufficient with the accumulations to arise thereon (if any) to provide within the prescribed period a sum equal in amount to the amount of such principal moneys the Board with the consent of the Local Government Board may discontinue the payment of the yearly sum or sums to the sinking fund in respect of that amount of the principal moneys.

(5) If the Board desire to accelerate the repayment of any principal moneys they may increase the amounts payable to the sinking fund in respect thereof.

(6) The provisions of this section shall not except to the extent herein-after enacted apply to principal moneys borrowed for the redemption or purchase of water annuities.

Payment of
sale money
&c. to sink-
ing fund for
principal
moneys.

63. Unless the Local Government Board otherwise direct the Board shall pay into the sinking fund for principal moneys or into the loans fund for water transfer stock herein-after referred to and shall apply in or towards the repayment of the principal moneys or the redemption of the said stock all such money being capital or in the nature of capital and not being wholly or in part otherwise appropriated or required to be otherwise applied as shall from time to time arise from any sale lease or other disposition of land or other property of the Board and as shall from time to time arise from any other source.

Application
of sinking
fund for
principal
moneys.

64. The Board may at any time apply the whole or any part of the sinking fund established under the section of this Act of which the marginal note is "Mode of repayment of principal moneys and sinking fund for principal moneys" as follows (that is to say) :—

(1) In or towards the discharge of the principal moneys or any of them for the repayment of which the fund is established Provided that the yearly sums to be paid to the fund shall not be affected by such application :

(2) Where the Board are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose any money for the time being forming part of the

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sinking fund and moneys so raised shall for the purposes of this Act be deemed to be moneys borrowed under a statutory borrowing power Provided that when exercising this power the Board shall— A.D. 1903.

- (A) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the use of moneys from the sinking fund;
 - (B) Credit the proper account or accounts in the sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund under subsection (1) of this section;
 - (c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from the sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of this part of this Act as to repayment and re-borrowing shall apply thereto accordingly:
- (3) When any of the principal moneys are discharged by the application of any part of the sinking fund the principal moneys so discharged shall be deemed to be in respect of such one or more of the statutory borrowing powers under which the principal moneys for the repayment of which the sinking fund is established were borrowed and if in respect of more than one in such proportions as the Board shall determine Provided that the amount of principal moneys deemed to be discharged in respect of any statutory borrowing power shall not exceed the amount of the contributions paid into the sinking fund in respect of that borrowing power and the accumulations (if any) thereon.

65. Pending or in default of any such application of the sinking fund for principal moneys as aforesaid the Board shall invest the same in any statutory security and the dividends income and annual proceeds thereof may be applied towards paying the yearly sums required to be paid to the sinking fund under the

Investment
of sinking
fund for
principal
moneys.

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A.D. 1903. section of this Act the marginal note of which is "Mode of
" repayment of principal moneys and sinking fund for principal
" moneys " provided that the Board may from time to time vary
and transpose their investments.

Power to
re-borrow.

66. The Board shall except as herein-after provided have power to re-borrow for the purpose of paying off any principal moneys borrowed or re-borrowed which have not been repaid and are intended to be forthwith repaid or in respect of any of the principal moneys which have been repaid by the temporary application of funds at the disposal of the Board within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow. Provided that the Board shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose. Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

Water
annuities.

67.—(1) The water annuities amounting to the sum of seventeen thousand three hundred and seventy pounds two shillings and fivepence per annum required to be paid under the Bury Improvement Act 1872 the liability for the payment of which was transferred to the Board by the Act of 1900 shall be paid by the Board.

(2) The annuities shall become due and payable half-yearly on the thirtieth day of June and the thirty-first day of December in each year and the half-yearly payments shall be made within one calendar month from those dates respectively.

(3) The Board may from time to time by agreement with any annuitant redeem all or any of his annuities and when any annuity is so redeemed the same is by virtue of this Act extinguished.

(4) The provisions in the Fourth Schedule to this Act shall apply to and in relation to the water annuities.

Water
annuities
sinking fund.

68.—(1) In order to provide for the extinction of the water annuities and for the repayment of any principal moneys borrowed or to be borrowed for the redemption or purchase of such annuities the Water Board shall establish a sinking fund to be called "The Water Annuities Sinking Fund" and any sum or sums which is or

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are or should be standing to the credit of the existing sinking fund provided for the extinction of the water annuities shall be forthwith carried to the credit of the sinking fund to be established under this section. A.D. 1903.

(2) The first payment into the said sinking fund shall be made on or before the thirty-first day of March one thousand nine hundred and four and the subsequent payments shall be made on or before the thirty-first day of March in each succeeding year.

(3) The yearly sums to be paid into the sinking fund shall be either—

(A) (i) The annual sum which if accumulated at compound interest at a rate not exceeding three pounds per centum per annum would together with the sums transferred under subsection (1) of this section and accumulations thereon at the same rate be sufficient after payment of all expenses to extinguish the water annuities capitalised at such value as the Local Government Board shall from time to time approve or determine and to repay any principal moneys borrowed for the redemption or purchase of such annuities and (ii) Accumulations of the said annual sums and sums transferred at compound interest at the rate per centum on which the said annual sum is calculated ; or

(B) The annual sum which if continued throughout the prescribed period would together with the sums transferred under subsection (1) of this section be sufficient without accumulations to extinguish the said annuities and to repay the said principal moneys within the prescribed period.

(4) The provisions of subsections (4) and (5) of the section of this Act of which the marginal note is "Mode of repayment of " principal moneys and sinking fund for principal moneys " shall apply mutatis mutandis in regard to the water annuities sinking fund and the payments to be made thereto.

(5) The Board may at any time apply the whole or any part of the sinking fund in the purchase and extinction of any of the water annuities or in or towards the discharge of principal moneys for the repayment of which the fund is established Provided that the yearly sums to be paid to the fund shall not be affected by such application but pending or in default of any such application of the sinking fund as aforesaid the Board shall invest the same in any statutory security and the dividends income and annual proceeds thereof may be applied towards paying the yearly sums required to be paid to the sinking fund under this section.

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A.D. 1903.

Water
transfer
stock.

69.—(1) The water transfer stock shall be redeemable and shall be redeemed at the time and in accordance with the terms and conditions determined by the Bury Corporation at the respective times of the creation and issue of the said stock.

(2) The provisions in the Fifth Schedule to this Act shall apply to the said stock.

(3) For payment of dividends on the said stock and for redemption and extinction or purchase and extinction thereof there shall be established and formed a fund called the Three and a half per centum Board Stock Loans Fund (in this Act referred to as "the loans fund").

(4) In each year the Board shall pay into the loans fund a sum or sums equal to the amount of all dividends payable in that year on the said stock.

(5) For the redemption and extinction or purchase and extinction of the said stock the Board shall pay into the loans fund in each year on or before the thirty-first day of March such sum as will with accumulations at compound interest at a rate not exceeding three pounds per centum per annum be sufficient after payment of all expenses to purchase the amount of the said stock at par within the prescribed period and by investment on statutory securities of the sums so paid into the loans fund and by like investment of the interest and annual proceeds arising from those securities make and maintain such accumulations as are in this subsection referred to.

(6) If before the expiration of the prescribed period the Board apply a part of the loans fund in the redemption or purchase and extinction of stock then a sum equal to the interest which the part of the loans fund so applied would have produced at the rate per centum on which the payments to the loans fund are calculated shall in each year until the expiration of the prescribed period be paid into the loans fund. Provided that if any amount of stock extinguished by application of part of the loans fund as aforesaid is purchased by the Board at a rate exceeding one hundred pounds sterling for an amount of stock of the nominal value of one hundred pounds the interest payable into the loans fund under this section shall be calculated as if only one hundred pounds sterling had been applied out of the loans fund for each amount of stock of the nominal value of one hundred pounds which may have been purchased and the Board shall pay into the loans fund during the year in which such purchase is made an additional sum or sums

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equal in amount to the sum or sums paid in excess of the said rate for the purchase of stock in such year. A.D. 1903.

(7) (A) If it appears to the Board at any time that the contributions which are being made to the loans fund will not be sufficient to redeem or to purchase and extinguish the amount of stock in respect of which such contributions are made within the prescribed period the amount of such contributions shall be increased to such extent as will be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Board shall increase the contributions to such extent as the Local Government Board may direct :

(B) The Board with the consent of the Local Government Board may at any time reduce the contributions to be made to the loans fund as aforesaid either temporarily or permanently in any case in which it appears to the Local Government Board that such contributions would if maintained be more than sufficient to redeem or to purchase and extinguish the amount of stock in respect of which such contributions are made within the prescribed period :

(C) If the amount in the loans fund at any time is in the opinion of the Local Government Board sufficient with accumulations to redeem or to purchase and extinguish any amount of stock within the prescribed period the Board with the consent of the Local Government Board may discontinue the payment of contributions to the loans fund in respect of such stock :

(D) If it appears to the Board at any time that the amount in the loans fund to the credit of any loan together with the probable accumulations thereof will be more than sufficient to provide for the redemption of the amount of stock outstanding in respect of such loan within the prescribed period the Board with the consent of the Local Government Board may transfer a part of such amount to an account of the loans fund relating to some other loan or may apply any income from such amount in the loans fund in excess of the amount which will be sufficient to provide for the redemption of the stock as aforesaid towards the payment of dividends upon the stock outstanding in respect of the loan or upon stock outstanding in respect of any other loan.

(8) The Board shall from time to time in order to raise the amount of the said several payments to be made to the loans fund do all such acts exercise all such powers collect all such money and make and levy all such rates as they lawfully can or ought to do exercise collect make and levy for the purposes of or in relation to the water undertaking.

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(9) The Board shall from time to time apply the loans fund first in paying the dividends on all their stock and next in redeeming such stock according to the terms of issue and purchasing stock for extinction.

(10) All stock redeemed by the Board or purchased by the Board for extinction shall be forthwith cancelled by the Board and on such cancellation the same and all dividends thereon (not already accrued) shall be and the same are by virtue of this Act extinguished.

(11) The statutory borrowing powers in exercise whereof the said stock has been issued shall be affected as follows viz. :—

(A) If the stock has been issued for the whole term limited for the continuance of any loan under the statutory borrowing power then that power to the extent of the money raised by that stock shall be and the same is by virtue of this Act extinguished; but

(B) If the stock has been issued for part only of that term then so much of the money raised by that stock as has not been paid off out of the loans fund may be re-borrowed by the Board for the residue of that term or any part thereof and so from time to time.

Returns as to provision for repayment of principal moneys and extinction of annuities and redemption and extinction of stock.

70.—(1) The Board shall furnish all such information and returns (if any) to the Local Government Board with regard to the exercise of the powers of this part of this Act as the Local Government Board shall from time to time require And in particular the treasurer of the Board shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund or to the loans fund in pursuance of the provisions of this Act or in respect of any of the principal moneys water annuities or water transfer stock and at any other time when the Local Government Board may require such a return or returns to be made transmit to the Local Government Board a return or returns in such form or forms as may from time to time be prescribed by the Local Government Board and if required by the Local Government Board verified by statutory declaration of the treasurer showing for the year next preceding the making of such return or returns or for such other period as the Local Government Board may prescribe the amounts which have been paid as instalments or annual payments and the

amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund or loans fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or loans fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and any other particulars required by such form or forms and in the event of his failing to make such return the treasurer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1903.

(2) If it appears to the Local Government Board by that return or otherwise that the Board have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund or the loans fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund or loans fund to any purpose other than an authorised purpose the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

PART VII.

MISCELLANEOUS.

71. When the enlargement of the Holden Wood Reservoir shall have been made and completed under the provisions of the Bury and Radcliffe Waterworks Act 1853 then and at all times thereafter the successors in title of the devisees of the late John Greenwood shall have and be entitled to the first and prior use and enjoyment of the water which under the provisions of the said Act is required to flow or be discharged therefrom for the use and supply of the mill or factory called Holden Wood Mill and of all For protection of owners of Holden Wood Mill.

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A.D. 1903. — and every other mill or factory or mills or factories and other works which now or at any time or times hereafter may be erected or built upon the lands or grounds held at the time of the passing of the said Bury and Radcliffe Waterworks Act 1853 by the devisees of the late John Greenwood near or adjoining to the said Holden Wood Reservoir and between such reservoir and the mills or factories called Helmshore and Bridge End and Raven Shore and Irwell Vale respectively or any of them.

Reservation
of sporting
rights in
Holden
Wood Reser-
voir.

72. The successors in title of the devisees of the late John Greenwood shall have and be entitled to the full free sole and exclusive right and privilege of sporting fishing and fowling and otherwise sporting in and about and upon the said reservoir called Holden Wood and the water to be therein from time to time contained in like manner as if the provision to the like effect in favour of the said devisees their heirs and assigns contained in section 45 of the Bury and Radcliffe Waterworks Act 1853 had not been repealed but the Board shall be at liberty on giving one month's notice to the owner or owners for the time being of such right and privilege to purchase and acquire the same on such terms as failing agreement shall be determined in manner provided by the provisions of the Lands Clauses Acts with reference to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions for the purposes of this section the expression "the promoters of the undertaking" shall mean the Board and the expression "lands" shall mean the said right and privilege.

Members of
Board need
not be
members of
constituent
authorities.

73. Notwithstanding the provisions of section 9 (Qualification of members of Board) of the Act of 1900 any constituent authority may and they are hereby empowered to elect as their representative or representatives (as the case may be) on the Board any person or persons who may not be a member or members of their own body.

Inquiries by
Local
Government
Board.

74. — (1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Board shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred

to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector. A.D. 1903. —

75. Proceedings for the recovery of any demand not exceeding fifty pounds made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court. Recovery of demands under fifty pounds.

76.—(1) Where any notice or demand under this Act requires authentication by the Board the signature thereof by their clerk shall be a sufficient authentication. Authentication and service of notices &c.

(2) Notices demands orders and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served.

77. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate or any water rate rent or charge payable to the Board. Judges not disqualified.

78. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Board and may be paid in the first instance out of any moneys in their hands but shall be charged to and recouped by the moneys which the Board are authorised to borrow under the powers of this Act. Costs of Act.

A.D. 1903.

SCHEDULES.

FIRST SCHEDULE.

BURY IMPROVEMENT ACT 1885.

Provisions as
to supply of
water to out-
lying districts.

36.—(A) The Corporation shall within two years from the passing of this Act erect and completely finish for use a pumping station and service reservoir with all necessary apparatus for the better supply of water for domestic purposes to the town of Haslingden from or by means of a service reservoir to be established at or near Slates and at a top water level of 950 feet above Ordnance datum and the Corporation shall not open the valve in the trunk main from Hapton to Bury except between the hours of six in the evening and six in the morning.

* * * * *

BURY CORPORATION WATERWORKS ACT 1889.

As to supply
of water to
Haslingden.

26. The Corporation shall within five years from the passing of this Act afford a sufficient supply of water to the inhabitants of the district of Haslingden entitled to demand the same by means of the works authorised by this Act or failing this by the means provided under section 36 subsection (A) of the Act of 1885. Provided that if the Corporation fail to afford such supply within the said period they shall be liable to forfeit and pay to the local board of the district of Haslingden a fixed sum of forty pounds per week by way of liquidated damages for and in respect of the period in and during which such failure shall continue. The local board may recover the amount of such damages together with the costs of the action in any court of competent jurisdiction.

BURY CORPORATION ACT 1894.

Extending
period for sup-
plying water to
the district of
Haslingden.

12. The period limited by section 26 of the Bury Corporation Waterworks Act 1889 in which the Corporation are required to afford a sufficient supply of water to the inhabitants of the district of Haslingden in the said county of Lancaster is hereby extended for a period of two years from the passing of this Act.

BURY CORPORATION WATER ACT 1899.

For securing a
better supply
of water to
borough of
Haslingden.

25. In order to give a better supply of water to the higher parts of the borough of Haslingden the Corporation shall construct the said service reservoir situate at Slates within two years from the passing of this Act.

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and Cross
Bank Reser-
voirs).

which the Bury Waterworks Company or any persons in trust for them were seised possessed or entitled at law or in equity immediately before the passing of this Act and all rates and moneys due or accruing to and all securities books accounts documents and choses in action vested in the said Company and all their privileges rights titles estate or interest therein shall be and the same are hereby well and effectually vested in and shall belong to the Company hereby incorporated for their absolute use and benefit to hold to them and their successors for the purposes of this Act for such and the same estates terms and other interests as the said Company under the recited Act hereby repealed or any persons in trust for them immediately before the passing of this Act had therein subject nevertheless to such charges interests and liabilities as at that time the same premises were respectively subject to.

Plans and
books of refer-
ence to be kept
by the clerk of
the peace and
be open to
inspection.

XLIII. And whereas plans and sections describing the line and levels of the intended channels cuts and aqueducts and the lands through which the same are intended to be carried and the situation of the intended reservoirs and works and books of reference containing a list of the owners lessees and occupiers of such lands have been deposited at the office of the clerk of the peace of the county of Lancaster be it enacted that such plans and sections shall be kept by the clerk of the peace for the said county and such clerk of the peace shall permit all persons to inspect the same at seasonable times and shall make out copies and extracts therefrom for all persons requiring the same on being paid the sum of one shilling for every such inspection and at the rate of sixpence for every one hundred words copied.

Company may
take water
from present
sources and
from certain
brooks named
herein.

XLVI. And be it enacted that it shall be lawful for the Company from time to time to take such water as they may require from the several brooks and sources now or heretofore used by the Company incorporated by the Act hereby repealed or flowing over or situated upon or beneath the lands vested in or to become vested in the Company hereby incorporated and also from a certain brook or stream of water called Black Carr Brook.

* * * * *

Power to Com-
pany to con-
struct new
works &c.
(now known
as Black Carr
or Gin Hall
Reservoir).

LI. And be it enacted that it shall be lawful for the Company subject to the restrictions herein contained from time to time to continue make construct lay down maintain alter or discontinue such waterworks steam engines water wheels reservoirs cisterns tanks aqueducts cuts conduits engines wastegates stopgates stopcocks sluices banks bridges pipes tunnels wells machinery and other works and also such houses and buildings upon the lands and streams vested in the Company or hereby authorised to be taken or used as they shall think proper for supplying the inhabitants within the limits of this Act with water.

Nothing to
authorise the
Company to
enter upon
lands &c. of
the Manchester
Bolton and
Bury Canal
and Railway
Company.

CXX. And whereas the Company are by this Act empowered to supply water within the limits of several townships through or in which the canal and works of the Company of Proprietors of the Manchester Bolton and Bury Canal Navigation and Railway pass or are situate and it is expedient to make provision for protecting and saving the rights of the said last-mentioned company Be it therefore enacted that nothing in this Act contained shall

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26.—(A) If any dispute shall arise between the Corporation and the corporation of Haslingden as to whether the Corporation are or are not failing to give a supply of water as provided by section 35 of the Waterworks Clauses Act 1847 to the consumers within the borough of Haslingden entitled to demand the same such dispute shall be submitted in writing by the Corporation or by the corporation of Haslingden for the decision of a water engineer to be appointed by the President of the Institution of Civil Engineers who may after inquiry thereinto make such order in the matter as he may deem equitable and the order so made shall be final and conclusive on the parties and the costs of and attending the determination of such dispute shall be in his discretion.

(B) In the event of the said water engineer finding by his order that the Corporation are failing to give such supply as provided by section 35 of the Waterworks Clauses Act 1847 they shall be liable to forfeit and pay to the corporation of Haslingden a fixed sum of forty pounds a week by way of liquidated damages for and in respect of the period in and during which such failure shall continue.

A.D. 1903.

For protection
of corporation
of Haslingden.

SECOND SCHEDULE.

PART I.

ACTS RELATING TO THE WATER UNDERTAKING OF THE BOARD.

The Bury Waterworks Act 1846.

The Bury and Radcliffe Waterworks Act 1853.

The Bury and Radcliffe Waterworks Amendment Act 1858.

The Haslingden and Rawtenstall Waterworks Act 1853.

The Haslingden and Rawtenstall Waterworks Act 1856.

The Haslingden and Rawtenstall Waterworks Act 1858.

The Haslingden and Rawtenstall Waterworks Act 1864.

The Bury Corporation Waterworks Act 1889.

The Bury Corporation Water Act 1899.

PART II.

ENACTMENTS EXCEPTED FROM REPEAL.

THE BURY WATERWORKS ACT 1846.

II. And be it enacted that from and immediately after the passing of this Act all the reservoirs and aqueducts works pipes steam engines drains tunnels arches roads houses and other buildings and all lands tenements hereditaments easements rights powers and privileges whatsoever of or to

All works &c.
vested in the
Company
hereby incor-
porated (works
now known
as Harden
Clough

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authorise or empower the Company or any person whomsoever to enter into or upon or to make construct or lay any tunnel culvert drain pipe or other work in through upon or under the said canal or the towing-path thereof or the works thereto belonging or other the lands buildings or premises of the said canal navigation and railway company for any purpose whatsoever without the consent of the said canal navigation and railway company under their common seal first obtained or without such consent as aforesaid to remove any tunnel culvert drain pipe or other work which may hereafter be constructed made or laid in through upon or under the same Provided that this clause shall not extend to prevent the Company from laying their pipes in or along any public road passing across the said canal or railway by means of any bridge or archway.

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CXXI. Provided always and be it enacted that nothing in this Act contained shall extend or be deemed or construed to extend to abridge prejudice affect diminish alter vary take away or interfere with the rights privileges powers usages franchises or authorities of or belonging to the Company of Proprietors of the Manchester Bolton and Bury Canal Navigation and Railway.

Reserving the rights of the Manchester Bolton and Bury Canal Navigation.

THE BURY AND RADCLIFFE WATERWORKS ACT 1853.

XXVII. And whereas plans and sections showing the line and levels of the waterworks and also a book of reference containing the names of the owners lessees and occupiers or reputed owners lessees and occupiers of the lands and streams in or through which the works are intended to be made or to pass have been deposited with the clerk of the peace for Lancashire it shall be lawful for the Company subject to the provisions and restrictions in this and the said incorporated Acts contained to make and maintain the said waterworks in the line and on the levels and upon the lands delineated on the said plans and described in the said book of reference and to enter upon take and use such of the lands streams and waters described upon the said plans (particularly the waters of the Ogden Brook and of the River Ogden) as shall be necessary for the purposes of the said waterworks or to agree for a lease of such lands and streams and to take therefrom such water as the Company may require for the purposes of this and the said incorporated Acts.

Power to make waterworks according to deposited plans (now known as the Calf Hey Reservoir).

XXXVIII. The Company shall and they are hereby required from time to time and at all times to pay and make good to the East Lancashire Railway Company or any other corporation or person all losses costs damages injuries and expenses as well immediate as consequential which the East Lancashire Railway Company or any other corporation or person may incur suffer or be put unto by reason of any act or proceeding of the Company or by reason of the failure or giving way from any cause whatsoever of any of the reservoirs embankments watercourses pipes or other works constructed by the Company under the provisions of this Act.

Company to repair damage done to East Lancashire Railway by failure of their works.

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A.D. 1903

For the protection of the Lancashire and Yorkshire Railway Company.

XL. The Company shall not be empowered to purchase any part of the lands or grounds of the Lancashire and Yorkshire Railway Company and except for the purpose of laying down pipes under the provisions of this and the Waterworks Clauses Act 1847 nothing in this Act contained shall extend to authorise the Company to enter upon or use any of the lands or grounds now belonging to the Lancashire and Yorkshire Railway Company or to alter vary use or interfere with their railway or canal or any of the bridges towing-paths or other works thereof respectively and the pipes to be laid down across the railway and canal of the said Lancashire and Yorkshire Railway Company or any of the bridges towing-paths or other works thereof shall be so placed as not in any way to obstruct or endanger the passage of traffic along the said railway and canal or to lessen or abridge the headway under any of the said bridges and shall be laid down under the superintendence and to the satisfaction of the engineer for the time being of the said Lancashire and Yorkshire Railway Company and in laying down such pipes under upon or across the said railway and canal or any of the bridges towing-paths or other works thereof the Company shall do as little damage as possible and shall make full compensation to the said railway company for all damage sustained by them by reason of the exercise of any of the powers of this Act and in case of dispute as to the amount of such compensation the same shall be settled by arbitration or the verdict of a jury under the provisions of the Lands Clauses Consolidation Act 1845.

For protection of the parties interested in the Holden Wood Reservoir in any extension of the works.

XLVII. In case the Company shall hereafter extend their works in the Ogden Valley so as to provide reservoir room for the storage of more than forty million cubic feet of water in the aggregate to be reckoned exclusively of the capacity of the proposed service reservoir the Company shall thenceforth discharge or cause to flow from and out of such extension of their said works during the hours aforesaid over and above the said stipulated quantity of six cubic feet per second an additional quantity of water to be calculated after the rate of one cubic foot per second for every fifteen million cubic feet of additional storage or reservoir room provided by such extension.

For further protection of the parties interested in the Holden Wood Reservoir in any extension of the works.

XLVIII. Before the Company shall supply any water to the inhabitants of the said district from or by means of any future extension of their reservoirs or storage room in the Ogden Valley beyond the capacity of those shown on the said deposited plans they shall commence and shall thenceforth continue to discharge through or over the said gauge to be erected below the Holden Wood Reservoir during the hours aforesaid the said stipulated additional quantity of water to be calculated after the rate of one cubic foot per second for every fifteen million cubic feet of additional storage or reservoir room provided by such extension as aforesaid.

Water supplied to mills to be taken as full compensation.

XLIX. If the Company shall commence and continue to discharge from and out of the said reservoirs and works respectively due quantities of water after the rates aforesaid from the times and during the periods herein-before specified for that purpose the same shall be accepted and taken by the parties interested in the Holden Wood Reservoir and in the waters of the Ogden

[3 EDW. 7.] *Bury and District Joint Water Board* [Ch. ccxxxiv.]
Act, 1903.

Brook and of the Rivers Ogden and Irwell as full compensation for the water intended to be diverted and appropriated for the purposes of this Act. A.D. 1903.

L. In case of any failure neglect or default by means or in consequence of which the several and respective quantities of water hereby required to flow or be discharged through or over the said gauges herein-before mentioned as aforesaid shall not so flow or be discharged the Company shall for every day on which any such failure neglect or default shall occur forfeit and pay to the occupiers of each of the mills and works affected thereby who may sue for and recover the same the sum of ten pounds.

Penalty on failure to supply the stipulated quantity of water.

LI. The Company shall and they are hereby required from time to time and at all times for ever hereafter to pay and make good to the owners and occupiers of all mills manufactories buildings lands and grounds and to every person whomsoever all loss costs and charges sum or sums of money damages and expenses whatsoever and compensation for all injury of what nature or kind soever as well immediate as consequential which such owners or occupiers or other persons may suffer incur pay expend or be put unto by reason or in consequence of the failure or giving way of any of the reservoirs embankments waste weirs watercourses pipes or other works constructed enlarged or used by the Company or of any such reservoirs embankments waste weirs watercourses pipes or other works not being maintained upheld and kept in good and sufficient repair or of any stoppage or delay in the working of any such mill or manufactory as aforesaid which may be occasioned in or about the making or constructing or the maintaining upholding or keeping in repair of any such reservoirs embankments waste weirs watercourses pipes or other works as aforesaid.

Company to make compensation to owners &c. of mills &c. for damages.

LII. The Company shall and they are hereby required at their own expense to make and construct and for ever thereafter maintain within one hundred yards from the foot of the bank of the said new reservoir and also within one hundred yards from the foot of the bank of the said Holden Wood Reservoir for the purpose of ascertaining and regulating the actual quantity of water passing and flowing from and out of the said reservoirs respectively such weirs gauges and other works as may be necessary for the purpose of accurately measuring gauging and regulating the water passing and flowing as aforesaid.

Gauges to be constructed.

* * * * *

LIII. It shall be lawful for the respective owners and occupiers of the said mills and works to have access at all times by themselves their agents and servants to the said weirs and gauges for the purpose of measuring and gauging the quantity of water from time to time passing through or over the same.

Mill owners to have access to gauges.

LIV. It shall be lawful for the Company to draw and let off the water of the Holden Wood Reservoir for the purpose of enlarging the same and also to draw and let off the water of the same reservoir and of any other reservoir which may be constructed or enlarged under the provisions of this Act when and as often as it shall be necessary for the purpose of repairing

Company may draw off water from reservoirs during repairs.

[Ch. ccxxxiv.] *Bury and District Joint Water Board* [3 Edw. 7.]
Act, 1903.

A.D. 1903. and keeping in repair the same and the Company in drawing off the said water shall do as little damage as possible and use all convenient speed in making the said enlargement and repairs as the case may be. Provided always that during the enlargement of the said Holden Wood Reservoir the Company shall continue to discharge from and out of their said works over the gauge to be erected below the said Holden Wood Reservoir a quantity of water being not less than four cubic feet per second during the hours aforesaid and after the said enlargement shall have been fully completed the Company shall commence and shall thenceforth for ever continue to discharge from and out of their said works over the said gauge a quantity of water being not less than six cubic feet per second during the hours aforesaid notwithstanding the water from any one or more of the existing reservoirs for the time being may have been drawn or let off for the purpose of making any such repairs or enlargement.

THE BURY AND RADCLIFFE WATERWORKS AMENDMENT ACT 1858.

Provision as to
supply of water
to owners of
mills &c. on the
rivers Ogden
and Irwell.

XXI. And whereas it is enacted by the recited Act (the Bury and Radcliffe Waterworks Act 1853 sections 43 and 46) that before the Company shall supply any water to the inhabitants of the district within the limits of the said Act from or by means of the waters of the reservoirs or works thereby authorised to be constructed or any of the brooks or streams flowing into Ogden Brook the Company shall execute works on the course of the Ogden Brook of sufficient capacity to enable them to commence and shall commence and thenceforth continue to discharge from and out of their works for the supply of the owners and occupiers of the mills and works on the rivers Ogden and Irwell during the hours in the said Act mentioned the quantities of water following that is to say until the enlargement of the Holden Wood Reservoir shall have been fully completed a quantity of water being not less than four cubic feet per second and after the enlargement of the said reservoir shall have been fully completed a quantity of water being not less than six cubic feet per second such supply to be given for ten and a half hours of every working day of each week except Saturday and for seven and a half hours on every Saturday. And whereas the said reservoir has not been enlarged within the period limited for that purpose by the said recited Act but the Company are nevertheless now able and willing to supply and continue to supply for the use of the said owners and occupiers the said six cubic feet of water per second during the hours aforesaid. Be it therefore enacted that sections 43 and 46 of the recited Act shall be and the same are hereby repealed but notwithstanding such repeal and notwithstanding the said Holden Wood Reservoir has not been enlarged the Company shall from and after the passing of this Act and before they supply any of the inhabitants within the limits of the said recited Act with water from the works of the Company on the Ogden Brook or from the Ogden Brook or River Ogden or any of the brooks or streams flowing into the said Ogden Brook or River Ogden commence and shall thenceforth continue to discharge through or over the gauge mentioned in the said Act as to be erected below the Holden Wood

[3 EDW. 7.] *Bury and District Joint Water Board* [Ch. CCXXXIV.]
Act, 1903.

Reservoir for the supply of the before-mentioned owners and occupiers a quantity of water equal at least to six cubic feet per second for ten and a half hours of every working day of each week except Saturday and for seven and a half hours on every Saturday. A.D. 1903.

XXII. The provisions of the recited Act with respect to the said Holden Wood Reservoir and the supply of water to the parties interested therein and all the rights and remedies of such parties for compelling and enforcing such supply excepting so far as such provisions or rights are by this Act expressly repealed or altered shall not be prejudiced or affected by this Act but the same shall be read and construed as though the supply of water by this Act secured to the said owners and occupiers had been originally prescribed by the sections 43 and 46 of the recited Act. As to supply of water to those interested in the Holden Wood Reservoir.

THE HASLINGDEN AND RAWTENSTALL WATERWORKS ACT 1853.

XVI. And whereas a plan and section showing the line and levels of the waterworks proposed to be constructed for the purposes of this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and occupiers of the lands in or through which the same are intended to be made or to pass or which may be required for the purposes of the Company have been deposited with the clerk of the peace for the county palatine of Lancaster Be it enacted that it shall be lawful for the Company subject to the provisions and restrictions in this and the said incorporated Acts contained to make construct and maintain the said waterworks in the line according to the levels and upon the lands delineated upon the said plan and section and described in the said book of reference and for that purpose to purchase absolutely for a sum in gross or in consideration of an annual rentcharge and to enter upon take and use such of the lands streams and waters delineated upon the said plan and referred to in the said book of reference as shall be necessary for that purpose or any easement liberty privilege power or authority in or over the same. Power to make waterworks according to deposited plans (now known as the Hapton or Clow Bridge Reservoir).

XIX. That the Company shall cause to be discharged from and out of the reservoir described on the said plan as "The Impounding Reservoir" and other works by this Act authorised to be made or from the feeders thereof to and into the course of a certain brook or stream called Lummy Water or Limy Water a quantity of water not being less than three cubic feet per second during twelve consecutive hours of every working day commencing at six o'clock in the morning of each such day Provided always that the before-mentioned quantity of water shall be furnished in manner aforesaid before the Company shall be entitled to appropriate to the supply of the district within the limits of this Act any of the waters of the brooks and streams which they are herein-before authorised to take for the purposes of this Act. Compensation for the supply of the brook called Lummy Water or Limy Water.

XX. That if the Company shall commence and continue to discharge from and out of their said reservoir and works the due quantity of water Water supplied after rates aforesaid

[Ch. ccxxxiv.] *Bury and District Joint Water Board* [3 Edw. 7.]
Act, 1903.

A.D. 1903.
—
taken as full
compensation.

after the rates aforesaid the same shall be accepted and taken by the parties interested in the waters of the Lummy Water or Limy Water and of the River Irwell as full compensation in respect of quantity for the water intended to be diverted and appropriated for the purposes of this Act.

Gauge to be
erected.

XXI. That the Company shall erect and construct and for ever after maintain upon the said brook or stream a suitable measuring gauge over or through which the said quantity of water shall flow or be discharged and the said gauge shall be open to the inspection and examination of the owners and occupiers of the several present and future mills and works interested in the water so to flow or be discharged through or over the same.

Penalty on
failure to sup-
ply the
stipulated
quantity of
water.

XXII. That in case of any failure neglect or default by or in consequence of which the quantity of water required by this Act to flow or be discharged through or over the said gauge lastly herein-before mentioned as aforesaid shall not so flow or be discharged the Company shall for and during every day on which such failure neglect or default shall occur forfeit and pay by way of penalties to the occupiers of each of the said several mills and works affected thereby who shall have actually received damage or incurred any loss by reason of such failure neglect or default as aforesaid and who may sue for and recover the same the sum of £10.

Water not to
be taken from
certain springs
on lands of
C. Towneley.

XXX. Provided also that it shall not be lawful for the said Company without the consent of the said Charles Towneley his heirs or assigns first had and obtained to divert appropriate impound or take the water of and arising from two springs or streams in and flowing from the farm of the said Charles Towneley called Nutshaw in the township of Hapton nor the water of and arising from a spring or stream in and flowing from another contiguous farm of the said Charles Towneley called Clow or Clough in the said township of Hapton which three springs respectively lie above the line of the said aqueduct or cut intended to communicate with the said reservoir at the westerly side thereof and are near to the houses and buildings of and upon the said farms called Nutshaw and Clow or Clough respectively anything herein-before contained to the contrary notwithstanding.

Saving rights
of the lord of
the manor of
Hapton.

XXXI. Provided also that except as by this Act expressly provided nothing in this Act contained shall be held or construed to prejudice diminish alter or take away any of the rights privileges jurisdictions immunities or lawful customs of belonging or appertaining to the said Charles Towneley or other the lord for the time being of the manor of Hapton aforesaid.

Company to
make good
damages occa-
sioned by giv-
ing way &c. of
reservoirs.

XXXII. That the Company shall and they are hereby required from time to time and at all times to pay and make good all loss damages injuries and expenses as well immediate as consequential which the East Lancashire Railway Company or any other corporation or person may incur suffer or be put unto by reason of the failure or giving way of any of the reservoirs embankments watercourses pipes or other works constructed by the Company under the provisions of this Act.

[3 EDW. 7.] *Bury and District Joint Water Board* [Ch. ccxxxiv.]
Act, 1903.

THE HASLINGDEN AND RAWTENSTALL WATERWORKS ACT 1864.

A.D. 1903.

8. And whereas a plan and section showing the line and levels of a conduit or line of pipes proposed to be constructed for the purposes of this Act and the recited Acts and also a book of reference containing the names of the owners and lessees and occupiers of the lands in or through which the same is intended to be made or to pass or which may be required for the purposes of the Company have been deposited with the clerk of the peace for the county palatine of Lancaster Be it enacted that it shall be lawful for the Company subject to the provisions and restrictions in this and the said recited Acts and also the said incorporated Acts contained to make construct and maintain the said conduit or line of pipes in the line and according to the levels and upon the lands delineated upon the said plan and section and described in the said book of reference and for that purpose to purchase absolutely for a sum in gross or in consideration of an annual rentcharge and to enter upon take and use such of the lands delineated upon the said plan and referred to in the said book of reference as shall be necessary for that purpose or any easement liberty privilege power or authority in or over the same and all parties seised or possessed of or entitled to any such lands who under the provisions of the said recited Lands Clauses Consolidation Acts or either of them are enabled to sell convey or release shall also be enabled to grant any such easement liberty privilege power or authority.

Power to construct conduit.

THE BURY CORPORATION WATERWORKS ACT 1889.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act namely:—

Provisions of certain general Acts incorporated.

The Lands Clauses Consolidation Acts 1845 1860 and 1869 as amended by the Lands Clauses (Umpire) Act 1883 (in this Act called "the Lands Clauses Acts"):

The Waterworks Clauses Act 1847 (except the provisions with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit):

The Waterworks Clauses Act 1863:

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof but such provisions shall apply only to the reservoir by this Act authorised.

3. The Waterworks Clauses Act 1847 as incorporated in the Act of 1872 and in this Act shall be read and have effect as if the words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" were omitted from section 44 thereof.

Amendment of Waterworks Clauses Act 1847.

6. Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference and according

Power to make waterworks (Clough Bottom Reservoir).

[Ch. ccxxxiv.] *Bury and District Joint Water Board* [3 Edw. 7.]
Act, 1903.

A.D. 1903. to the levels shown on the deposited sections the waterworks and other works
— following (that is to say):—

- (1) A reservoir ("Clough Bottom Reservoir") in the townships of Higher Booths and Cliviger and parish of Whalley to be situate on a stream known as the Whitewell Brook the embankment of which reservoir will be placed forty-six chains or thereabouts measured in a straight line in a north-easterly direction up the said stream from the centre of the bridge known as Springside Bridge across the said brook on the Burnley Road leading from Waterfoot to Burnley by way of a place called "Water" at which embankment the reservoir will commence and thence extend up such stream in a north-easterly direction for a distance of twenty-five chains or thereabouts measured in a straight line and there terminate:
- (2) A catchwater drain or conduit to be situate wholly in the said township of Higher Booths and parish of Whalley commencing in the intended reservoir fifty-two chains or thereabouts measured in a straight line in a north-easterly direction from the centre of the said bridge known as Springside Bridge and terminating in a stream one of the tributaries of the Whitewell Brook forty-five chains or thereabouts measured in a straight line in a north-westerly direction from the same point:
- (3) A diversion and alteration of the public road known as the Burnley Road leading from Waterfoot to Burnley by way of a place called "Water" to commence thirty-eight chains or thereabouts measured in a straight line in a north-easterly direction from the centre of the said bridge known as Springside Bridge and to terminate fifty-eight chains or thereabouts measured in a straight line in a north-easterly direction from the same point all which diversion and alteration will be situate wholly in the said township of Higher Booths and parish of Whalley:
- (4) A diversion and alteration wholly in the said township of Higher Booths and parish of Whalley of the occupation road known as Windy Bank Lane to commence one chain or thereabouts measured in a straight line in a north-easterly direction from the north-east gable of the farm house at Windy Bank and to terminate six chains or thereabouts measured in a straight line in the same direction from the aforesaid gable of the farm house at Windy Bank:
- (5) An aqueduct tunnel or conduit or line of pipes to commence in the township of Higher Booths in the parish of Whalley in the intended reservoir at a point forty-nine chains or thereabouts measured in a straight line in a north-easterly direction up the Whitewell Brook from the centre of the said bridge known as Springside Bridge and to terminate by a junction with an existing conduit or pipe of the Corporation in the Burnley Road at or near the Queen's Hotel Rawtenstall in the township of Lower Booths in the parish of Whalley:

[3 Edw. 7.] *Bury and District Joint Water Board* [Ch. ccxxxiv.]
Act, 1903.

Together with all necessary and proper cuts channels adits catchwaters aqueducts culverts tunnels drains sluices bywashes weirs gauges wells tanks filter beds embankments bridges roads approaches telegraphic and telephonic apparatus engines machinery appliances apparatus and conveniences connected with the said works or any of them or necessary for conducting inspecting maintaining repairing cleansing or managing the same Provided that such telegraphic and telephonic apparatus shall not be used in contravention of the exclusive privilege conferred upon Her Majesty's Postmaster-General by the Telegraph Act 1869.

A.D. 1903.

The works aforesaid will be made and situate within the several townships of Cliviger Higher Booths Lower Booths New Church Coupe Lench New Hall Hey and Hall Carr in the parishes of Whalley and Bury in the county of Lancaster.

7. The Corporation shall and they are hereby required from time to time and at all times hereafter to pay and make good to the owners lessees and occupiers of all mills manufactories dwelling and other houses cottages and other buildings now erected or in course of erection over upon the banks of or near the said Whitewell Brook or which may hereafter be erected in proper and reasonable situations down to its junction with the River Irwell and of all lands adjoining or near to the said brook all loss costs charges sum and sums of money damages and expenses whatsoever and for all injury of what nature and kind soever which such owners lessees or occupiers may suffer incur pay expend or be put unto by reason or in consequence of the failure or giving way of the said reservoir embankments watercourses or other works of the Corporation Provided that this section shall not prejudice or impair the rights or remedies of the owners lessees and occupiers of property below the said junction by reason or in consequence of the matters aforesaid Provided that no obligation or liability shall attach to the Corporation in respect of an injury occasioned by an actus Dei and not arising from any default of the Corporation or any defect in the works.

Compensation
for bursting of
reservoir.

8. Subject to the provisions of this Act the Corporation may enter upon take and use such of the lands shown on the deposited plans and described in the deposited book of reference as they may require for the purposes of this Act and may from time to time for the purpose of their waterworks collect impound take use get and appropriate all rivers springs streams and waters intercepted by any of those works and all springs streams and waters found in on or under any of those lands acquired by the Corporation and may stop up all such occupation roads and footways upon the same lands as are shown on the deposited plans as intended to be stopped up and may appropriate for the purposes of this Act the sites of the occupation roads and footways so stopped up.

Power to take
lands and
waters.

21. The Corporation shall cause to be discharged from and out of the reservoir and other works by this Act authorised to be made or from the feeders thereof to and into the course of a certain brook or stream called

Compensation
for the supply
of the brook
called White-
well Brook.

[Ch. ccxxxiv.] *Bury and District Joint Water Board* [3 Edw. 7.]
Act, 1903.

A.D. 1903. Whitewell Brook a quantity of water not being less than two cubic feet per second during twelve consecutive hours of every working day commencing at six o'clock in the morning of each such day Provided always that the before-mentioned quantity of water shall be furnished in manner aforesaid before the Corporation shall be entitled to appropriate any of the waters which they are herein-before authorised to take for the purposes of this Act Provided further that the Corporation shall not use appropriate or diminish the existing supply of water to the mills and property situate on the Whitewell Brook until they commence to discharge the compensation water by this Act provided.

Water supplied
after rate
aforesaid to be
taken as full
compensation.

22. If the Corporation shall commence and continue to discharge from and out of their said reservoir and works the due quantity of water after the rate aforesaid the same shall be accepted and taken by the parties interested in the waters of the Whitewell Brook and of the River Irwell as full compensation in respect of quantity for the water intended to be diverted and appropriated for the purposes of this Act.

Gauge to be
erected.

23. The Corporation shall erect and construct and for ever after maintain upon the said brook or stream a suitable measuring gauge (situate not more than one hundred and fifty yards below the foot of the embankment of the said Clough Bottom Reservoir) over or through which the said quantity of water shall flow or be discharged and the said gauge shall be open to the inspection and examination of the owners and occupiers of the several present and future mills and works interested in the water so to flow or be discharged through or over the same Provided that if any difference shall arise between the Corporation and any of such owners and occupiers as to the suitability of such measuring gauge the same shall be referred to and determined once for all by an engineer to be appointed by the President of the Institution of Civil Engineers and the costs of any such reference shall be in the discretion of the engineer so appointed.

Penalty on
failure to sup-
ply the stipu-
lated quantity
of water.

24. In case of any failure neglect or default by or in consequence of which the quantity of water required by this Act to flow or be discharged through or over the said gauge lastly herein-before mentioned as aforesaid shall not so flow or be discharged the Corporation shall for and during every day on which such failure neglect or default shall occur forfeit and pay by way of penalty to the owners or occupiers of each of the said several mills and works affected thereby who shall have actually received damage or incurred any loss by reason of such failure neglect or default as aforesaid and who may sue for and recover the same the sum of five pounds and in case of any wilful default in the discharge of the compensation water by this Act provided the Corporation in addition to any penalty they may incur therefor under the provisions of this section shall make compensation to the owners or occupiers for any loss damage or injury which they may suffer by reason of such wilful default.

[3 EDW. 7.] *Bury and District Joint Water Board* [Ch. ccxxxiv.]
Act, 1903.

THE BURY CORPORATION WATER ACT 1899.

A.D. 1903.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not consistent with the provisions of this Act) are hereby incorporated with this Act namely :—

Provisions of certain general Acts incorporated.

The Lands Clauses Acts :

The Waterworks Clauses Act 1847 (except the provisions with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit) :

The Waterworks Clauses Act 1863 :

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof but such provisions shall apply only to the reservoirs by this Act authorised.

3. The Waterworks Clauses Act 1847 as incorporated in the Bury Improvement Act 1872 and in this Act shall be read and have effect as if the words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" were omitted from section 44 thereof.

Amendment of Waterworks Clauses Act 1847.

6. Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the waterworks and other works following (that is to say) :—

Power to make waterworks (Ogden Reservoir).

(1) A reservoir to be called "the Ogden Reservoir" to be situate on the Ogden Brook wholly in the township or parish of Haslingden the embankment of which reservoir will be placed six chains or thereabouts measured in a straight line in a westerly direction up the said brook from the point where the centre of the mineral tramway line crosses the said brook at which embankment the reservoir will commence and thence extend up such brook in a westerly direction for a distance of forty-eight chains or thereabouts measured in a straight line and will there terminate :

(2) An aqueduct conduit or line of pipes to commence in the said embankment of the intended Ogden Reservoir at a point nine chains or thereabouts measured in a straight line in a westerly direction up the said brook from the point where the centre of the mineral tramway line crosses the said brook and to terminate in the Black Carr Reservoir of the Corporation situate in the township or parish of Bury :

(3) A service reservoir situate at Slates wholly in the township or parish of Haslingden in a field there No. 916 on the $\frac{1}{2500}$ Ordnance map (Lancashire sheet LXXI 12 1892) belonging to the Corporation of Bury :

(4) An aqueduct conduit or line of pipes situate wholly in the township or parish of Haslingden and to commence by a junction with the

[Ch. ccxxxiv.] *Bury and District Joint Water Board* [3 EDW. 7.]
Act, 1903.

A.D. 1903.

existing main pipe of the Corporation on land belonging to the Corporation at a point south of the present service reservoir of the said Corporation at Holden Wood and terminating in the said intended service reservoir at Slates :

Together with all necessary and proper cuts channels adits catchwaters aqueducts culverts tunnels drains sluices bywashes weirs gauges wells tanks filters filter-beds embankments bridges roads approaches telegraphic and telephonic apparatus engines machinery appliances apparatus and conveniences connected with the said works or any of them or necessary for conducting inspecting maintaining repairing cleansing or managing the same Provided that such telegraphic and telephonic apparatus shall not be used in contravention of the exclusive privilege conferred upon Her Majesty's Postmaster-General by the Telegraph Act 1869.

The works aforesaid will be made and situate within the townships or parishes of Haslingden Ramsbottom Walmersley-cum-Shuttleworth and Bury in the county of Lancaster.

Power to take
lands and
waters.

7. Subject to the provisions of this Act and to any provisions as to compensation water contained in any former Act under which the Corporation are authorised to take any of the waters in this section mentioned the Corporation may enter upon take and use all or any of the lands shown on the deposited plans and described in the deposited book of reference as they may require for the purposes of this Act and may for the purposes of their waterworks collect impound take use get and appropriate all rivers springs streams and waters intercepted by any of those works and particularly the waters of the stream known as the Ogden Brook and all springs streams and waters found in on or under any of the lands acquired by the Corporation under the provisions of this Act and may stop up all such occupation roads and footways upon the same lands as are shown on the deposited plans as intended to be stopped up and may appropriate for the purposes of this Act the sites of the occupation roads and footways so stopped up.

Limits of lateral
deviation.

8. In the construction of the works by this Act authorised the Corporation may deviate laterally from the lines of the respective works as shown on the deposited plans to the extent of the limits of lateral deviation marked in each case thereon Provided that the Corporation shall not in the exercise of the power of lateral deviation hereby given construct any embankment or retaining wall of any reservoir of a greater height above the general surface of the ground than that shown on the deposited plans and three feet in addition.

Limits of vertical
deviation.

9. In the construction of the works by this Act authorised the Corporation may deviate vertically from the levels shown on the deposited sections in the case of the reservoir to any extent not exceeding five feet upwards or ten feet downwards.

Time for completion of
works.

10. If the works by this Act authorised other than the Slates Reservoir are not completed within ten years from the passing of this Act then on the

[3 EDW. 7.] *Bury and District Joint Water Board* [Ch. ccxxxiv.]
Act, 1903.

expiration of that period the powers by this Act granted for the making thereof respectively or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as is then completed. A.D. 1903.

12. The powers of the Corporation for the compulsory purchase of lands under this Act shall not be exercised after the expiration of five years from the passing of this Act. Period for compulsory purchase of lands.

14.—(1) The Corporation may in lieu of acquiring any lands for the purpose of the aqueducts authorised by this Act acquire such easements and rights in such lands as they may require for the purpose of making maintaining cleansing repairing renewing and enlarging the aqueducts and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such easements and rights as fully as if the same were lands within the meaning of those Acts. Power to acquire easements only for aqueducts.

(2) Provided that as regards any lands taken or used by the Corporation for the purpose of such aqueducts where they are respectively laid underground the Corporation shall not (unless they give notice to treat for such lands and not merely for easements therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Corporation.

(3) Provided also that (except as to land forming part of a street) nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

15. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the Lands Clauses Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid. Power to take easements &c. by agreement.

16. The Corporation if they think fit may enter into agreements with any owner lessee or occupier of any land within the drainage areas of the water to be taken into the reservoirs by this Act authorised who is authorised or empowered to make drains for the improvement of the same for the Agreements as to drainage.

[Ch. ccxxxiv.] *Bury and District Joint Water Board* [3 Edw. 7.]
Act, 1903.

A.D. 1903. — purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters flowing to upon or from such lands directly or derivatively into such reservoirs in such manner and to such extent as such owner lessee or occupier and the Corporation may agree and the Corporation may apply to the purposes of this section any part of the moneys raised by them under the authority of this Act.

Power to hold lands and exercise powers for protection of waters and waterworks.

17.—(1) The Corporation may hold the lands in the several drainage areas acquired by them under the powers of this Act and which may in their opinion be necessary for the purpose of protecting their waters and waterworks against pollution nuisance encroachment or injury and so long as such necessity shall in the opinion of the Corporation continue such lands shall not be deemed to be superfluous lands within the meaning of the Lands Clauses Acts.

(2) The Corporation may in and upon the lands so acquired construct and lay down drains sewers watercourses buildings and other works and conveniences necessary or proper for the purpose of intercepting and taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the waters which the Corporation are empowered to take or impound in the several drainage areas from being polluted fouled contaminated or discoloured or may for the purposes aforesaid carry any such drain sewer or watercourse under across and along any street or road within or adjoining the lands in the several drainage areas subject and according to the provisions of the Waterworks Clauses Act 1847 incorporated with this Act Provided that the Corporation shall not create or permit the creation or continuance of any nuisance.

Restricting supply of water from Holden Wood Reservoir.

20. From and after the passing of this Act no water shall be supplied by the Corporation from their Holden Wood Reservoir for domestic purposes until they have executed the filter-beds works and appliances authorised and directed to be constructed by this Act.

Provisions as to water from Gambleside Colliery.

21. The water from the Gambleside Colliery shall not be turned or taken into the Hapton Reservoir nor used by the Corporation for domestic purposes.

Water to be filtered.

22.—(1) All water supplied by the Corporation and used for domestic purposes shall before delivery be efficiently and continuously filtered and the filter-beds works and appliances necessary or proper for that purpose shall forthwith be constructed and thenceforward maintained by the Corporation.

(2) If the Corporation fail to construct such filter-beds works and appliances as aforesaid or shall fail thenceforward to efficiently maintain the same they shall be liable to a fixed sum of ten pounds per day by way of liquidated damages for every day on or on any part of which an infringement of this section shall occur and such fixed sum of ten pounds per day shall be recoverable at the instance of any local authority supplied by the Corporation.

(3) The medical officer of health of any urban or rural district supplied with water by the Corporation or his assistants or other person duly

[3 Edw. 7.] *Bury and District Joint Water Board* [Ch. ccxxxiv.]
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authorised in that behalf by the said medical officer may at any time enter upon the property of the Corporation in order to ascertain whether or not the Corporation have complied with the provisions of this section as to filtration and for that purpose may take and carry away samples of water from any part of any stream or works of water supply or water purification or from any point or points where the water passes into the mains of the Corporation for the purpose of distribution and the Corporation shall afford all reasonable facilities for such inspection and taking of samples Provided that no such sample shall be used for the purpose of recovering any damages as aforesaid unless such sample shall have been taken in the presence of a responsible officer of the Corporation or in the event of neglect or refusal by the Corporation to send such responsible officer then in the presence of a justice of the peace or a person nominated by him and shall have been sealed and marked at the time as having been so taken nor unless another sample taken at the same time and similarly sealed and marked shall have been delivered to such officer of the Corporation.

A.D. 1903.

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24. Nothing in this Act contained shall interfere with prejudice or affect any rights or interests which Sir John Hardy Thursby and John Ormerod Scarlett Thursby (trading under the style of the executors of John Hargreaves) and their successors may have in or under any of the lands which the Corporation are under the provisions of this Act authorised to purchase.

For protection of Sir John Hardy Thursby and John Ormerod Scarlett Thursby.

27. The local authority of any district supplied with water by the Corporation shall be entitled to take reasonable quantities of water from the fire-plugs in their district and use the same for fire brigade practices Provided that no local authority shall take water under the provisions of this section oftener than once a month.

Supply of water for fire practices.

The said local authority shall give to the Corporation forty-eight hours notice in writing before taking any water as aforesaid.

The said local authority shall be responsible for all damages done to the valves or hydrants which may arise from the exercise of the powers by this section conferred on them.

The said local authority shall pay for all water used by them for the purposes aforesaid at the rate of sixpence per thousand gallons.

28. Subject to the provisions of this Act the waterworks by this Act authorised and the lands acquired by the Corporation in the several drainage areas shall for all purposes whatsoever inclusive of rates rents and charges be deemed part of the waterworks undertaking of the Corporation.

New works and purchased lands to form part of water undertaking.

33. Notwithstanding anything in this Act it shall be lawful for the lords of the honor of Clitheroe and their lessees and tenants to exercise all such rights as they now possess or but for the passing of this Act would have possessed of entering upon the surface of the lands delineated on the deposited plans and of winning working and carrying away mines quarries and minerals and of using the waters of springs and streams within the honor of Clitheroe for those purposes and of depositing spoil and of constructing drains roads tramways and other ways upon the lands within the

For protection of lords of honor of Clitheroe.

[Ch. cccxxiv.] *Bury and District Joint Water Board* [3 Edw. 7.]
Act, 1903.

A.D. 1903. said honor and of draining mines and quarries and of doing all acts and things necessary or proper for the purposes aforesaid as fully and effectually as if this Act had not been passed.

It shall not be lawful for the Corporation to acquire otherwise than by agreement any buildings or plant at any time erected used or occupied by the said lords or their lessees or tenants within the limits of the honor of Clitheroe aforesaid.

Saving rights under section 47 of Bury and Radcliffe Waterworks Act 1853.

34. Nothing in this Act contained shall interfere with prejudice or affect the rights and interests of any persons interested in or entitled to the compensation water referred to in section 47 of the Bury and Radcliffe Waterworks Act 1853 and the Ogden Reservoir by this Act authorised shall be deemed to be an extension of the works of the Corporation in the Ogden Valley within the meaning of that section :

Provided that during the first filling of the reservoir authorised by this Act the Corporation shall immediately after one-third of the total impounding capacity of such reservoir has been reached discharge out of such reservoir the compensation water as herein-before provided so long as there shall remain in such reservoir sufficient water to enable them to comply with this provision.

PART III.

THE BURY IMPROVEMENT ACT 1872.

As to additional compensation water.

109. When the Commissioners shall become liable to discharge from and out of the extension of their works the additional quantity of water specified in section 47 of the Bury and Radcliffe Waterworks Act 1853 they may in lieu thereof discharge such additional quantity of water from and out of the Holden Wood Reservoir.

Gauges to be erected.

110. The Commissioners shall either in addition to or in lieu of the existing gauge situate below the Holden Wood Reservoir erect and construct and for ever after maintain a suitable measuring gauge or suitable measuring gauges over or through which shall flow or be discharged the several quantities of water which they are required to discharge as and by way of compensation and the said gauge or gauges shall be open to inspection and examination of the owners and occupiers of the several present and future mills and works interested in the water so to flow or be discharged over or through the same.

THE BURY CORPORATION ACT 1894.

Power to take lands for waterworks undertaking.

10. Subject to the provisions of this Act the Corporation may enter upon take use and appropriate for the purposes of their waterworks undertaking the land herein-after described and delineated on the deposited plans and described in the deposited book of reference (that is to say) :—

A piece or strip of land belonging or reputed to belong to the Right Honourable the Earl of Abingdon situate in the township of Higher Booths in the parish of Whalley in the said county of Lancaster.

A.D. 1903.

THIRD SCHEDULE.

WATERWORKS.—STATEMENT OF BORROWING POWERS AND LOAN DEBT 31ST MARCH 1903.

I. Number.	II. Authority.	III. Term of Years.	IV. Amount Authorised. £ s. d.	V. Lands or Works &c.	VI. Amount Raised. £ s. d.	VII. Amount of Debt extinguished by means of Sinking Fund and Loans Fund.	Amount of Debt. VIII.			IX. Amount in the Sinking Fund and Loans Fund. £ s. d.	X. Nett Debt. £ s. d.
							A. Loans. £ s. d.	B. Stock. £ s. d.	C. Total. £ s. d.		
1	Bury Improvement Act 1872 as amended and extended by the Bury Improvement Act 1885 the Bury Corporation Water Act 1889 and the Bury and District Water (Transfer) Act 1900.	50	189,955 0 0	Land	83,523 3 9	12,581 0 0	20,942 3 9	—	20,942 3 9	1,017 0 0	19,925 3 9
2	Bury Improvement Act 1872 as amended and extended by the Bury Improvement Act 1885 the Bury Corporation Water Act 1889 and the Bury and District Water (Transfer) Act 1900.	50	—	Works &c.	150,431 16 3	58,951 15 2	12,730 1 1	84,750 0 0	97,480 1 1	4,489 1 2	92,990 19 11
3	Bury Improvement Act 1872 as amended and extended by the Bury Improvement Act 1885 the Bury Corporation Water Act 1889 and the Bury and District Water (Transfer) Act 1900.	50	*521,103 12 6	Works &c.	521,103 12 6	—	521,103 12 6	—	521,103 12 6	16,624 11 0	504,479 1 6
4	Bury Corporation Water Act 1889	60	130,000 0 0	Land and works.	130,000 0 0	6,089 8 11	118,660 11 1	5,250 0 0	128,910 11 1	1,201 0 9	122,709 10 4
5	Bury Corporation Water Act 1889 (cost of)	20	3,343 13 6	—	3,343 13 6	1,546 7 2	1,797 6 4	—	1,797 6 4	180 2 4	1,617 4 0
6	Bury Corporation Water Act 1899	60	403,000 0 0	Land and Works.	168,651 5 10	1,101 0 0	167,550 5 10	—	167,550 5 10	724 14 1	168,825 11 9
7	Bury Corporation Water Act 1899 (cost of)	10	6,012 4 1	—	6,012 4 1	—	6,012 4 1	—	6,012 4 1	524 9 0	5,487 15 1
8	Bury and District Water (Transfer) Act 1900 (Transfer Consideration).	60	100,563 2 7	—	100,563 2 7	180 0 0	100,383 2 7	—	100,383 2 7	1,072 0 0	99,311 2 7
9	Bury and District Water (Transfer) Act 1900 (Transfer Consideration) (cost of).	5	1,894 14 4	—	1,894 14 4	—	1,894 14 4	—	1,894 14 4	—	1,894 14 4
		£	1,355,972 7 0	—	1,121,523 12 10	80,449 11 3	951,074 1 7	90,000 0 0	1,041,074 1 7	25,832 18 4	1,015,241 5 3

* NOTE.—This sum is the capital value of the Water Annuities on the basis at present adopted.

[Ch. ccxxxiv.] *Bury and District Joint Water Board* [3 Edw. 7.]
Act, 1908.

A.D. 1903.

FOURTH SCHEDULE.

PROVISIONS TO APPLY TO AND IN RELATION TO WATER ANNUITIES.

Register of annuitants.

1. The Board shall from and after the passing of this Act keep a book to be called "The Register of Waterworks Annuitants" and in such book shall be entered from time to time the names and addresses of the holders of such annuities together with the amount of the annuities to which such holders shall be respectively entitled and every annuitant and if such annuitant be a corporation the clerk or agent of such corporation may at all convenient times peruse such book gratis and may require a copy thereof or any part thereof and for every hundred words so required to be copied the Board may demand a sum not exceeding sixpence.

Certificates to be evidence.

2. The certificate of any annuity shall be admitted in all courts as *prima facie* evidence of the title of the holder thereof his executors administrators successors or assigns to the annuity therein specified nevertheless the want of such certificate shall not prevent the party for the time being entitled to any such annuity from disposing thereof.

Several certificates may be granted to the annuitant.

3. If at any time an annuitant be desirous of having several certificates instead of one then on such one certificate being produced to the Board they may order the same to be cancelled and shall thereupon issue to him as he requires two or more certificates of annuities of the aggregate amount of the annuity the certificate for which is so cancelled and in every such case a due entry of the substituted certificates shall be made by the Board in the register of waterworks annuitants and for every such substituted certificate the Board may demand any sum not exceeding two shillings and sixpence.

Certificate to be renewed when destroyed.

4. If the certificate of any annuity be worn out or damaged then upon the same being produced to the Board they may order it to be cancelled and thereupon the Board shall issue a similar certificate to the party then entitled to the certificate so worn out or damaged or if any such certificate be lost or destroyed then upon satisfactory proof thereof to the Board they shall issue a similar certificate to the party then entitled to the certificate so lost or destroyed and in either case a due entry of the substituted certificate shall be made by the Board in the said register of waterworks annuitants and for every such substituted certificate the Board may demand any sum not exceeding two shillings and sixpence.

Annuities to be personal estate.

5. The annuities shall be personal estate.

Transfer of annuities to be by deed duly stamped.

6. Subject to the regulations herein contained every annuitant may sell and transfer all or any part of his annuity and every such transfer shall be by deed in the form herein-after set forth or to the like effect (that is to say) :—

:FORM OF TRANSFER OF ANNUITY.

I A. B. of

£

paid to me by C. D. of

in consideration of

[3 Edw. 7.] *Bury and District Joint Water Board* [Ch. ccxxxiv.]
Act, 1903.

transfer to him his executors administrators and assigns the perpetual annuity (or annuities) No. _____ of _____ charged on the waterworks undertaking of the Board by the Bury and District Joint Water Board Act 1903 and payable at the Board's office in Bury by equal half-yearly payments on the _____ day of _____ and on the _____ day of _____ yearly and all my right and interest therein and thereto.

A.D. 1903.
—

As witness my hand and seal this _____ day of _____ 19 .

7. Every such deed of transfer (when duly executed) shall be delivered to the Board and be kept by them and they shall keep a book to be called "The Register of Transfers of Waterworks Annuities" and they shall enter a memorial of every such deed of transfer in that book and shall endorse such entry on the deed of transfer (such endorsement to be signed by the clerk to the Board) and shall on demand deliver a new certificate to the purchaser and for every such entry of a deed of transfer with such endorsement and certificate the Board may demand any sum not exceeding two shillings and sixpence and on the request of any transferee an indorsement of the transfer to him shall be made on the certificate of the annuity transferred instead of a new certificate being granted and such indorsement being signed by the clerk to the Board shall be considered in every respect the same as a new certificate and until such deed of transfer be so delivered to the Board the transferee shall not be entitled to receive any part of the annuity transferred.

Transfer of annuities to be registered &c.

8. If any annuitant shall sell and transfer part only of any annuity to which he may be entitled he shall deliver to the Board together with the deed of transfer thereof the certificate of the annuity of which he shall so have sold and transferred a part and the same shall be thereupon cancelled and the Board shall deliver to the purchaser of part of such annuity a certificate of annuity for so much as he shall have so purchased and to the annuitant so selling part of his annuity a certificate of annuity for so much of the original annuity as shall be retained by him and for every such certificate the Board may demand any sum not exceeding two shillings and sixpence.

When part only of annuity transferred new certificates to be granted.

9. The Board may close the register of transfers of waterworks annuities for a period not exceeding twenty-one days before the twenty-first day of July and the twenty-first day of January yearly and any transfer made during the time when the register is closed shall as between the Board and the transferee but not otherwise be considered as made after that time.

Closing of transfer books.

10. If the interest in any annuity has become transmitted in consequence of the death or bankruptcy or insolvency of any annuitant or in consequence of the marriage of a female annuitant or by any other lawful means than by a transfer according to the provisions of this Act such transmission shall be authenticated by a declaration in writing in such manner as the Board shall require and every such declaration shall state the manner in which and the party to whom the annuity is transmitted and shall be made and signed

Transmission of annuities by other means than transfer to be authenticated by a declaration.

[Ch. ccxxxiv.] *Bury and District Joint Water Board* [3 EDW. 7.]
Act, 1903.

A.D. 1903. — by some credible person before a justice and such declaration shall be left with the Board and thereupon they shall enter the name of the person entitled under such transmission in the register of transfers of waterworks annuities and for every such entry the Board may demand any sum not exceeding two shillings and sixpence and until such transmission has been so authenticated no person claiming by virtue of any such transmission shall be entitled to receive any part of the annuity transmitted.

Proof of transmission by marriage will &c.

11. If such transmission be by virtue of the marriage of a female annuitant the declaration shall contain a copy of the register of such marriage or other particulars of the celebration thereof and shall declare the identity of the wife with the holder of the annuity and if the transmission be by virtue of any testamentary instrument or by intestacy the probate of the will or the letters of administration or an official extract therefrom shall together with the declaration be produced to the Board and upon such production in either of those cases the Board shall make an entry of the declaration in the said register of transfers of waterworks annuities and for every such entry the Board may demand any sum not exceeding two shillings and sixpence.

Board not bound to see to execution of trusts.

12. The Board shall not be bound to see to the execution of any trusts whether express implied or constructive to which any annuity may be subject and the receipt of the party in whose name any such annuity shall stand in the register of waterworks annuitants or if it stands in the names of more parties than one the receipt of any party named in such register shall from time to time be a sufficient discharge to the Board for any money payable in respect of any such annuity notwithstanding any trust to which such annuity may then be subject and whether or not the Board have had notice of such trusts and the Board shall not be bound to see to the application of the money paid upon such receipt and if any annuitant or mortgagee be by reason of infancy or lunacy unable to give an effectual receipt the receipt of the guardian or committee of his or her estate shall in like manner be a sufficient discharge to the Board.

Certificate to be demanded before annuity recoverable.

13. The Board shall not be bound to pay any annuity until the party entitled thereto has demanded a certificate of it and the instalments of an annuity in arrear and not wrongfully withheld by the Board shall not bear interest as against them.

Recovery of arrears of annuities.

14. If within thirty days after any half-yearly portion of any annuity becomes payable and after demand thereof in writing it be not paid the person entitled thereto may recover the same against the Board in any court of competent jurisdiction and without prejudice to his right so to recover the same may require the appointment of a receiver as by this Act provided.

FIFTH SCHEDULE.

A.D. 1903.

PROVISIONS TO APPLY TO AND IN RELATION TO "WATER
TRANSFER STOCK"

REGISTRATION AND CERTIFICATES.

1.—(1) The Board may if they think fit and on and subject to such terms and instructions not inconsistent with any provision of this Act as they think expedient appoint and keep appointed an officer of the Board or other person or the Bank of England or any other bank or a banker as registrar for all or any of the purposes of this Act (herein-after referred to as "the registrar").

Appointment
of registrar.

(2) The Board in relation to the provisions of this Act in relation to stock and the registrar shall respectively be deemed a banker within the Bankers' Books Evidence Act 1879.

2.—(1) The Board or the registrar shall keep books in which shall be entered the names and addresses of holders from time to time of stock and the amounts held by them (herein-after referred to as "the stock register").

Water Board
stock register.

(2) The stock register shall be *prima facie* evidence of any matter entered therein in accordance with this Act and of the title of the persons entered therein as holders of stock.

3.—(1) On demand of a holder of stock the Board may if they think fit give to him a certificate of the proprietorship thereof under their common seal specifying the amount of stock to which he is entitled (in this part of this Act referred to as "a stock certificate").

Certificates of
proprietorship
of stock.

(2) A stock certificate shall be *prima facie* evidence of the title of the person therein named his executors administrators successors or assigns to the stock therein specified but the want of a stock certificate if such want be accounted for to the satisfaction of the Board shall not prevent the holder of stock from disposing of and transferring the same.

(3) If a stock certificate is worn out or damaged the Board on production thereof may cancel it and give a similar stock certificate to the party in whom the property in the stock certificate and in the stock therein specified is then vested.

(4) If a stock certificate is lost or destroyed the Board on proof thereof to their satisfaction may give a similar stock certificate to the party entitled to the certificate lost or destroyed.

(5) An entry of the issue of a stock certificate or a substituted certificate as the case may be shall be made in the stock register.

TRANSFER.

4.—(1) Every Board stockholder may transfer all or any part of his stock by deed and every transfer of stock shall be by deed.

Power for
stockholder to
transfer.

[Ch. ccxxxiv.] *Bury and District Joint Water Board* [3 EDW. 7.]
Act, 1903.

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(2) The deed of transfer shall relate only to the transfer and shall not contain any recital trust power or proviso whatsoever.

(3) The deed of transfer when duly executed shall be delivered to and kept by the Board or the registrar and the Board or the registrar shall enter a memorial thereof in a book to be called "the register of transfers of stock" and shall endorse on the deed of transfer a notice of that entry.

(4) The Board or the registrar shall on demand and on delivery up of the old stock certificate or on proof satisfactory to the Board of its absence deliver a new stock certificate to the purchaser or shall at the option of the purchaser make an endorsement of the transfer on the existing stock certificate which endorsement being signed by direction of the Board or by the registrar shall be equivalent to a new stock certificate.

(5) Until the deed of transfer has been so delivered to the Board or the registrar the Board or the registrar shall not be affected thereby and the purchaser of the stock shall not be entitled to receive any dividend thereon.

Evidence on transfer.

5.—(1) The Board or the registrar before allowing any transfer of stock may if the circumstances of the case appear to them or him to make it expedient require evidence of the title of any person claiming the right to make the transfer.

(2) That evidence shall be a statutory declaration of one or more competent persons or of such other nature as the Board or the registrar with the approval of the Board may require.

Closing of transfer books.

6.—(1) The Board or the registrar with the approval of the Board may close the register of transfers of stock on any day in the month next before that on which dividends on that portion of stock are payable but so that the books be not at any time kept closed for more than fifteen days.

(2) The persons who on the day of such closing are inscribed as stockholders shall as between them and their transferees of stock be entitled to the dividend next payable thereon.

Stamp duty on transfers.

7. Unless the stamp duty shall have been compounded for every deed of transfer of stock shall be duly stamped and the consideration shall be truly stated therein.

TRANSMISSION.

Transmission on death.

8.—(1) The interest on the stock of a stockholder dying shall be transferable by his executors or administrators notwithstanding any specific bequest thereof.

(2) The Board or the registrar shall not be required to allow any executors or administrators to transfer any stock until the probate of the will of or the letters of administration to the deceased has or have been left with the Board or the registrar for registration and may require all the executors who have proved the will to join in the transfer.

Transmission on marriage &c.

9.—(1) If the interest on any stock has become transmitted in consequence of the bankruptcy of a stockholder or the marriage of a female stockholder or by any lawful means other than a transfer in books or by

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Act, 1903.

deed or by the death of a stockholder that transmission shall be authenticated by statutory declaration of one or more competent persons or in such other manner as the Board or the registrar require. A.D. 1903.

(2) The declaration shall state the manner in which and the party to whom the stock has been transmitted and shall be left with the Board or the registrar.

(3) If the transmission is in consequence of the marriage of a female stockholder the declaration shall if the Board or the registrar so require set forth a copy of the register of the marriage or other particulars of the celebration thereof and declare the identity of the wife with the holder of the stock.

(4) The name of the person entitled under the transmission shall be entered in the stock register.

(5) Until the transmission has been so authenticated the Board or the registrar shall not be affected thereby and no person claiming by virtue thereof shall be entitled to receive any dividend on the stock.

(6) In this section the term "transmission" includes any case of apparent transmission in consequence of the change of the name of the stockholder although the actual ownership of the stock may remain unaltered.

DIVIDENDS.

10. The Board may pay by the registrar the dividends on stock.

Payment of
dividends.

11. The Board or the registrar shall not be required to allow any executors or administrators to receive any dividend on stock held by their testator or intestate until the probate of the will or the letters of administration has or have been left with the Board or the registrar for registration.

Dividends to
executors &c.

12. The Board or the registrar before allowing the receipt of any dividend on any stock may if the circumstances of the case appear to them or him to make it expedient require evidence of the title of any person claiming a right to receive the dividend and that evidence shall be a statutory declaration of competent persons or of such other nature as the Board or the registrar may require.

Evidence of
title.

13.—(1) Where more persons than one are registered as joint holders of any stock any one of them may give an effectual receipt for any dividend thereon unless notice to the contrary has been given to the Board or the registrar by any other of them.

Dividends to
joint holders.

(2) Where stock is standing in the name of an infant or person of unsound mind jointly with any person not under legal disability a letter of attorney for the receipt of the dividends on the stock shall be sufficient authority in that behalf if given under the hand and seal of the person not under disability attested by two or more credible witnesses but the Board or the registrar before acting on the letter of attorney may if they or he think fit require proof to their or his satisfaction of the alleged infancy or

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unsoundness of mind by a statutory declaration of one or more competent persons.

Dividend warrants by post.

14.—(1) Where a stockholder desires to have his dividends sent to him by post he may make a request for that purpose to the Board or the registrar in writing signed by him on a form approved by the Board and shall give to the Board or the registrar an address in the United Kingdom or in the Channel Islands or the Isle of Man to which the letters containing the warrants are from time to time to be sent.

(2) The posting by the Board or the registrar of a letter containing a dividend warrant addressed to a stockholder at his request at the address so given by him shall as respects the liability of the Board and of the registrar be equivalent to the delivery of the warrant to the stockholder himself.

(3) Every warrant so sent by post shall be deemed a cheque and the Board and the registrar shall in relation thereto be deemed a banker within the Bills of Exchange Act 1882.

GENERAL.

Nature of stock.

15.—(1) Stock is personal property.

(2) Stock is not liable to foreign attachment by the custom of London or otherwise.

Notice of trusts.

(3) No notice of any trust express implied or constructive in respect of any stock or of any stock certificate to bearer or coupon shall be entered in the stock register or in any other book kept by the Board or the registrar or be receivable by the Board or the registrar or affect the Board through the registrar or otherwise.

Holding of stock by trustees.

16.—(1) Trustees or other persons for the time being authorised to invest money in the mortgages debentures or debenture stock of any railway or other company shall unless the contrary is provided by the instrument authorising the investment have the same power of investing that money in stock (other than stock for the time being represented by a stock certificate to bearer) as they have of investing it in the mortgages debentures or debenture stock aforesaid.

(2) Provided that where two or more persons are successively interested in trust money no investment thereof shall be made in stock at a price exceeding the redemption value of the stock.

Unclaimed dividends.

17.—(1) If at any time any dividend on any stock is unclaimed at the time for payment thereof the same shall nevertheless on demand at any subsequent time whatsoever be paid to the person showing his right thereto out without interest in the meantime.

(2) Where any dividend remains unclaimed for five years from the time for payment thereof the Board shall cause notice thereof to be sent by post in a registered letter addressed to the stockholder named in their books by the description and at the address therein appearing and so at the expiration of three other successive periods of five years.

[3 Edw. 7.] *Bury and District Joint Water Board* [Ch. ccxxxiv.]
Act, 1903.

(3) At the end of every successive period of five years from the day when the first dividend became payable on the water transfer stock first issued after the passing of the Bury Improvement Act 1885 and at the end of every like successive period of five years from the day when the first dividend shall become payable on board stock the Board shall publish an advertisement in a newspaper circulating in their water limits stating what if any dividends on stock other than those falling due at the then last half-yearly or other day of payment are then unclaimed and the names and addresses appearing in the stock register of the holders of the stock on which the dividends are unclaimed. A.D. 1903.

(4) At the end of every successive period of ten years from the day when the first dividend became payable on water transfer stock first issued after the passing of the Bury Improvement Act 1885 and at the end of every successive period of ten years from the date when the first dividend shall become payable on board stock the Board unless it has been otherwise agreed between them and the registrar may require the registrar to repay to them all dividends unclaimed during that period and then in his hands and the Board shall pay the same into the loans fund to be applied in the payment of dividends on water transfer stock or board stock as the case may be without prejudice nevertheless to the rights of any person to those dividends.

18. Whenever the Board raise money they shall cause to be given to each lender of money so raised notice in writing signed by the clerk or other authorised officer of the Board of the equality of charge which stock has by virtue of this Act. Notice on borrowing.

19.—(1) Nothing in this Act shall affect any power or duty of the Board to sell lease or otherwise dispose of any land or property of the Board or to apply any purchase money or other money arising thereby in discharge of any charge on that land or property or the revenues thereof other than the charge of stock or affect any claim of any person under such first-mentioned charge. Saving for power to sell lands &c.

(2) That land or property shall in the hands of the purchaser or other person taking the same under the sale lease or other disposition be by virtue of this Act absolutely freed from the charge of stock and he shall not be concerned to see to the application of that purchase money or other money or be answerable for any loss or misapplication thereof.

20. Stock shall be deemed capital stock of a body corporate within the Act of the session of the twenty-fourth and twenty-fifth years of Her late Majesty (chapter ninety-eight) "to consolidate and amend the statute law of England and Ireland relating to indictable offences by forgery." Forgery.

21. The Board may or where the Bank of England are the registrar they may with the sanction of the Board from time to time issue any forms that may be required for carrying into effect the provisions of this Act and may also from time to time make any regulations that are not inconsistent with this Act with respect to anything necessary for carrying into effect the Regulations as to forms &c.

[Ch. ccxxxiv.] *Bury and District Joint Water Board* [3 EDW. 7.]
Act, 1903.

A.D. 1903. — provisions of this Act which relate to or affect the Bank and when made may alter vary or repeal any such regulations and make other regulations instead thereof or in addition thereto and any such regulations for the time being in force shall be duly observed.

22.—(1) Fees not exceeding those specified hereunder may be taken by or on behalf of the Board in the cases mentioned namely :—

	s.	d.
On original issue of stock receipt or stock certificate -	2	6
On any new stock certificate - - - - -	2	6
On transfer including certificate - - - - -	2	6

(2) The proceeds of fees shall be paid by the Board into the loans fund and shall be applied in reduction of contributions payable into the loans fund in respect of dividends on stock.

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